

**CHAPTER lxxxviii.**

An Act to constitute and incorporate a Joint Board consisting of representatives of the urban district councils of Gelligaer Caerphilly Bedwellty Rhymney and Mynyddislwyn and the rural district council of St. Mellons in the counties of Glamorgan and Monmouth and to authorise the Board to construct main trunk sewers and other works for the disposal of the sewage of such districts and for other purposes. A.D. 1912.

[7th August 1912.]

WHEREAS the urban districts of Gelligaer and Caerphilly in the county of Glamorgan and the urban districts of Bedwellty Rhymney and Mynyddislwyn in the county of Monmouth (in this Act called "the districts") are under the management and local government of the respective urban district councils of Gelligaer Caerphilly Bedwellty Rhymney and Mynyddislwyn:

And whereas the district of Rhymney and the greater portions of the districts of Gelligaer and Caerphilly and portions of the districts of Bedwellty and Mynyddislwyn are situate within the watershed of and drain into the River Rhymney or the tributaries thereof:

And whereas the parishes of Bedwas and Machen Upper are situate in the rural district of St. Mellons in the county of Monmouth and are under the management and local government of the St. Mellons Rural District Council and the parish of Bedwas and part of the parish of Machen Upper are also situate within the watershed of and drain into the River Rhymney:

And whereas the arrangements in regard to the disposal of the sewage of the districts and in the said parishes are of a most unsatisfactory character and the polluted and filthy

A.D. 1912. condition of the River Rhymney and its tributaries resulting therefrom is injurious and prejudicial to public health and urgently requires improvement:

And whereas for the purpose of putting an end to and preventing the increasing pollution of the River Rhymney it is expedient to constitute and incorporate a Board as by this Act provided representative of the said councils and to authorise such Board to construct the main trunk sewers and other works by this Act authorised for the effectual disposal of the sewage of the districts and of the parishes aforesaid:

And whereas the urban district councils of Gelligaer Bedwellty Rhymney and Mynyddislwyn and the rural district council of St. Mellons have agreed and concurred in obtaining this Act and it is expedient in the interests of the whole of the said districts that the urban district council of Caerphilly whose district adjoins the urban district of Gelligaer and the parish of Bedwas should become subject to the provisions of this Act and a constituent authority as hereinafter provided of the Board hereby constituted and incorporated as aforesaid:

And whereas it is expedient that the Board constituted by this Act should be empowered to borrow moneys for the construction of the works by this Act authorised and otherwise for the purposes of this Act:

And whereas estimates have been prepared of the sums necessary for the purchase of lands and easements and for the execution of the various works by this Act authorised and such estimates amount to the sum of two hundred and twenty-two thousand pounds:

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas an absolute majority of the whole number of the Gelligaer Bedwellty Rhymney and Mynyddislwyn Councils respectively at meetings of those bodies respectively held as to the Gelligaer Council on the seventh day of November as to the Bedwellty Council on the seventh day of November as to the Rhymney Council on the eighth day of November and as to the Mynyddislwyn Council on the fourteenth day of November all in the year one thousand nine hundred and eleven after ten clear days' notice by public advertisement of such meetings

respectively and of the purposes thereof as to the meeting of the Gelligaer Council in the Western Mail being a local newspaper published or circulating in the Gelligaer Urban District as to the meetings of the Bedwellty and Rhymney Councils respectively in the Monmouth Guardian being a local newspaper published or circulating in the Bedwellty and Rhymney Urban Districts respectively and as to the Mynyddislwyn Council in the South Wales Gazette being a local newspaper published or circulating in the urban district of Mynyddislwyn such notices being in addition to the ordinary notices required for summoning such meetings resolved that it was expedient to promote the Bill for this Act:

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And whereas such resolution of the Gelligaer Council was published twice in the South Wales Daily News and the resolutions of the Bedwellty and Rhymney Councils respectively were published twice in the said Monmouth Guardian and the said resolution of the Mynyddislwyn Council was published twice in the said South Wales Gazette and all the said resolutions have received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of each of the said councils respectively at further special meetings held respectively in pursuance of similar notices as to the Gelligaer Council on the sixth day of February as to the Bedwellty Council on the twenty-fourth day of January as to the Rhymney Council on the seventeenth day of January and as to the Mynyddislwyn Council on the seventeenth day of January one thousand nine hundred and twelve being in each case not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been complied with by each of the said urban district councils:

And whereas plans showing the lands proposed to be acquired and the works proposed to be constructed under this Act and sections of the said works and books of reference to such plans were duly deposited with the clerks of the peace for the counties of Glamorgan and Monmouth which plans sections and books

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A.D. 1912. of reference are in this Act respectively referred to as "the deposited plans sections and books of reference":

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Rhymney Valley Sewerage Board Act 1912.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Establishment Constitution and Proceedings of Sewerage Board.

Part III.—Works and Lands.

Part IV.—Protective Provisions.

Part V.—Financial Provisions.

Part VI.—Miscellaneous.

Incorporation of Acts. 3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act:—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in the application of such provisions for the purposes of this Act the term "the railway" shall mean the intercepting and outfall sewers and tanks by this Act authorised and the term "the centre of the railway" shall respectively mean the boundaries of the tanks and the centre of such sewers.

4. For the purposes of this Act the following sections of the Public Health Act 1875 the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 the Public Health (Officers) Act 1884 the Public Health (Members and Officers) Act 1885 and the Public Health Acts Amendment Act 1890 shall apply and the Board shall for the purposes of this Act have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations of an urban sanitary authority under the said sections and Acts so far as the same are applicable (that is to say):—

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 Application
 of provisions
 of Public
 Health Acts.

Of the Public Health Act 1875—

Sections 14 to 20 and 26 to 34 all inclusive as to sewerage and drainage save that sections 32 to 34 inclusive shall not apply to the principal works (Works Nos. 1 to 5) authorised by Part III. of this Act;

Section 153 as to removal of gas and water pipes;

Sections 173 and 174 relating to contracts;

Sections 179 to 181 relating to arbitration;

Section 192 (except as regards the inspector of nuisances) sections 193 to 197 (both inclusive) section 200 and sections 205 and 206 (except so much of section 206 as requires the publication in a local newspaper of the annual report) relating to officers and conduct of business of local authorities;

Sections 245 247 (as amended by the District Auditors Act 1879 and by section 58 of the Local Government Act 1894) 249 and 250 relating to audit;

Section 253 and sections 259 260 and 262 and sections 265 266 and 267 and section 269 as amended by the Summary Jurisdiction Act 1884 relating to legal proceedings;

Section 285 relating to the execution of works in adjoining districts (save as to the works authorised by Part III. of this Act) and combination for execution of works;

Sections 297 and 298 as to Provisional Orders;

Sections 299 (except so far as relates to water supply) 300 301 and 302 relating to defaulting local authorities;

Section 303 relating to the granting of Provisional Orders for the repeal alteration or amendment of Local Acts;

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Sections 306 to 309 both inclusive relating to miscellaneous provisions :

Of the Public Health Act 1875 (Support of Sewers) Amendment Act 1883—

Sections 3 4 and 5 :

Of the Public Health (Officers) Act 1884—

Section 2 :

Of the Public Health (Members and Officers) Act 1885—

Section 2 :

Of the Public Health Acts Amendment Act 1890—

Sections 16 and 17 :

And in the construction of the above-mentioned enactments the combined area of the constituent districts shall be deemed to be the district of a local authority and the Board to be the local authority for such district Provided that nothing in this section contained shall affect the powers of any constituent authority with reference to sewers other than the intercepting or outfall sewers and other works by this Act authorised or to any other works required for the sewerage of any of the constituent districts and not for that of any other of the constituent districts.

The powers by this section conferred upon the Board shall be in addition to and not in derogation from the powers conferred by other sections of this Act.

Interpreta-
tion.

5. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction Provided that “the undertakers” or “the company” means the Board And in this Act unless the context otherwise requires—

“The Board” means the Rhymney Valley Sewerage Board incorporated by this Act;

“The clerk” means the clerk to the Board;

“The Gelligaer Council” means the urban district council of the Gelligaer District;

“The Caerphilly Council” means the urban district council of the Caerphilly District;

“The Bedwellty Council” means the urban district council of the Bedwellty district;

“The Rhymney Council” means the urban district council A.D. 1912.
of the Rhymney District;

“The Mynyddislwyn Council” means the urban district
council of the Mynyddislwyn District;

“The St. Mellons Council” means the rural district council
of the St. Mellons District;

“The councils” means the Gelligaer Council the Caerphilly
Council the Bedwellty Council the Rhymney Council
the Mynyddislwyn Council and the St. Mellons
Council;

“The district funds” and “general district rates” mean
respectively the several district funds and general district
rates of the urban districts of Gelligaer Caerphilly
Bedwellty Rhymney and Mynyddislwyn;

“Constituent authority” means any one of the councils;

“Constituent district” means the district of the council of
Rhymney the Rhymney portion of Gelligaer the
Rhymney portion of Caerphilly the Rhymney portion
of Bedwellty the Rhymney portion of Mynyddislwyn
and the parish of Bedwas and the Rhymney portion of
the parish of Machen Upper in the rural district of
St. Mellons;

The expression “the Rhymney portion of Gelligaer” means
so much of the urban district of Gelligaer as is
defined and described in Part I. of the First Schedule
to this Act;

The expression “the Rhymney portion of Caerphilly” means
so much of the urban district of Caerphilly as is defined
and described in Part II. of the First Schedule to this
Act;

The expression “the Rhymney portion of Bedwellty” means
so much of the urban district of Bedwellty as is defined
and described in Part III. of the First Schedule to this
Act;

The expression “the Rhymney portion of Mynyddislwyn”
means so much of the urban district of Mynyddislwyn
as is defined and described in Part IV. of the First
Schedule to this Act;

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The expression "the Rhymney portion of Machen Upper" means so much of the parish of Machen Upper as is defined and described in Part V. of the First Schedule to this Act;

"Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Board or the councils and annuities rentcharges and securities transferable by delivery;

"Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

"Revenues of the Board" means the moneys receivable by the Board from the constituent authorities and all rates and moneys which they are authorised to levy and collect within the districts of the constituent authorities and any revenue arising from the undertaking of the Board or from any land or other property for the time being belonging to the Board.

PART II.

ESTABLISHMENT CONSTITUTION AND PROCEEDINGS OF SEWERAGE BOARD.

6. For the purpose of carrying this Act into execution there shall be a Board of twenty-one members constituted and elected

Incorporation of Board.

as by this Act provided and they and their successors from time to time elected and acting in pursuance of this Act shall be a body corporate under the name and style of "The Rhymney Valley Sewerage Board" with perpetual succession and a common seal and with power to sue and be sued and to purchase take hold lease and dispose of lands (without any licence in mortmain) and other property for the purposes of this Act. A.D. 1912.
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7. The constitution of the Board shall subject to adjustment as hereinafter provided be as follows:— Constitution
of Board.

Seven members to be elected by the Gelligaer Council from among the members thereof:

Six members to be elected by the Caerphilly Council from among the members thereof:

Four members to be elected by the Bedwellty Council from among the members thereof:

Two members to be elected by the Rhymney Council from among the members thereof:

One member to be elected by the Mynyddislwyn Council from among the members thereof:

One member to be elected by the St. Mellons Council from among the members thereof.

8.—(1) The first election of members of the Board by each of the councils shall take place at a meeting of each council to be holden within eight weeks from the passing of this Act or within such further time as the Local Government Board shall allow and the members so elected shall subject to the provisions of this Act continue in office till the day of the annual meeting of the Board in the year one thousand nine hundred and fifteen. Election of
members.

(2) Each of the councils shall at a meeting to be held within fifteen days after the fifteenth day of April in the year one thousand nine hundred and fifteen and in each third successive year or failing this at a special meeting to be held with special notice of the object of such meeting elect from among themselves the number of members of the Board whom they are by this Act authorised to elect and each member so elected shall (subject to the provisions of this Act and of the Acts incorporated herewith) hold office on and from the day of the annual meeting of the Board in the year in which he is so elected for a period of three years.

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Provisions
where failure
to elect
members
occurs.

9. If any of the councils fail to elect the first members of the Board or to fill an occasional vacancy as by this Act provided it shall be competent nevertheless for the other members of the Board to carry this Act into execution and if any of the councils fail to elect members of the Board at any subsequent period of election the then existing members of the Board representing such council (unless otherwise disqualified) shall continue in office till their successors are elected.

No person
to be a
member of
Board on
behalf of
more than
one council.

10. No person being a member of the Board by election from any of the councils shall so long as he continues a member by virtue of such election be qualified to be also a member of the Board by election from any other council and any such subsequent election shall be void and if the same person shall be elected a member of the Board by more than one of the councils at the same election he shall choose under which election he will serve and the other election shall be deemed void.

Disqualifi-
cation on
ceasing to be
a member of
any council.

11. If a member of the Board elected by any of the councils ceases to be a member of such council or becomes disqualified from such membership he shall also cease to be a member of the Board.

Resignation
of member
of Board.

12. Any member of the Board may at any time resign his office as such member at any meeting of the Board or by writing addressed to the clerk.

Disqualifi-
cation of
member of
Board.

13. The provisions of section 46 of the Local Government Act 1894 shall mutatis mutandis apply to the members of the Board as if the Board were a council of a district other than a borough.

Outgoing
members
eligible for
re-election.

14. Every member of the Board going out of office shall if otherwise duly qualified be eligible immediately or at any future time for re-election and every person re-elected shall be deemed a new member.

Occasional
vacancies.

15. If any member of the Board dies or resigns or is disqualified or ceases to be a member of the Board from any cause the council whom he represented may if they think fit at any time after the occurrence of such vacancy elect a member to the Board in his place from amongst themselves and every member of the Board so appointed shall continue in office

subject to the provisions of this Act and only so long as the person in whose place he is elected would have been entitled to continue in office. A.D. 1912.

16. Whenever an election of a member or members of the Board has been made the clerk of the council by whom the election has been made shall by writing under his hand certify the election to the Board and shall forthwith on the first election transmit the certificate to the clerk of the Gelligaer Council and on every subsequent election to the clerk and every such certificate shall be conclusive evidence of such election. Election of members to be certified to Board.

17. The Board shall hold their first meeting at the Council Offices Hengoed on the second Thursday after the last day provided by or under this Act for the first election of the members thereof (unless some other day or time shall be appointed for the purpose by the Local Government Board and then on such day and at such time as shall be so appointed) and subsequent meetings (including annual meetings) shall be held at such place within one of the constituent districts and on such days and at such times as the Board may from time to time appoint. Provided that the annual meeting of the Board shall be held not later than fourteen days after the thirtieth day of April in each year. First and other meetings of Board.

18. In addition to the meetings to be held by appointment of the Board the chairman of the Board for the time being or any three or more members of the Board may at any time by writing addressed and sent to the clerk require a special meeting to be convened and the clerk shall convene a meeting accordingly provided that at least two clear days notice thereof shall be given to each member of the Board by letter addressed to him and either sent by post to or delivered at his residence. Power to call special meetings.

19. Any act of the Board or any of the members thereof shall not be invalidated or be illegal by reason of any irregularity in the election of any member of the Board or by reason of any person not qualified or ceasing to be qualified acting as a member of the Board or by reason of any failure or omission on any occasion on the part of any of the councils to elect a member of the Board or by reason of any other irregularity error failure or omission in or about any election or in or about Error omission &c. not to invalidate any act of Board.

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any matter preliminary or incidental thereto If any person acts when disqualified he shall for each offence be liable on summary conviction to a fine not exceeding twenty pounds.

As to
convening
meetings.

20. The first meeting of the Board shall be convened by the clerk to the Gelligaer Council and every subsequent meeting shall be convened by the clerk Every meeting shall be convened by circular delivered to each member of the Board or sent by post to or delivered at his residence two clear days at least before the day of meeting and the Board shall from time to time make regulations with respect to the summoning notices places management and adjournment of their meetings and generally with regard to the transaction of their business.

Quorum.

21. The number of members of the Board present to constitute a meeting of the Board shall be seven.

Board to
appoint
chairman &c.

22. At their first meeting and subsequently at each annual meeting of the Board the Board shall appoint one of their number to be chairman and another to be vice-chairman of the Board for the ensuing year Provided that the chairman and vice-chairman shall at no time be chosen from the members representing the same constituent authority.

At all meetings of the Board the chairman or in his absence the vice-chairman or in the absence of both the chairman and the vice-chairman some member of the Board chosen by the members present shall preside.

In the event of the death or permanent incapacity or resignation in writing of the chairman or vice-chairman the Board shall appoint one of their members to fill the vacancy.

Minutes.

23. Minutes of the proceedings of every meeting shall be drawn up and fairly entered in a book kept for that purpose and shall be signed by the chairman of the meeting or of the next ensuing meeting.

Standing
Orders.

24. Subject to the provisions of this Act the Board may make standing orders for the regulation of their proceedings and business and vary or revoke the same.

Question to
be decided
by majority
of votes.

25. Subject as in this Act provided all questions arising at a meeting of the Board or of any committee thereof shall be decided by a majority of the members present at the meeting and in the case of an equality of votes the chairman of the meeting shall have a second or casting vote.

26. The Board may from time to time appoint and may remunerate a clerk a manager an engineer a treasurer an accountant and such other officers clerks and servants as they from time to time think requisite and all officers and servants so appointed shall be removable by the Board at their pleasure No member of the Board or of any of the councils shall be an officer of the Board but a person may be and continue an officer of the Board and of any of the councils.

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 Officers of
 Board.

27. The Board shall cause proper books of account and other books in relation thereto to be kept and shall prepare half-yearly balance sheets to the thirty-first day of March and the thirtieth day of September in each year showing in all necessary detail the receipts and expenditure of the Board and shall report the same to each of the constituent authorities on or before the next ensuing thirtieth day of June and thirty-first day of December respectively.

Accounts
 and half-
 yearly
 balance
 sheets.

28. If at any time any difference arises between the Board and any of the constituent authorities respecting any matter arising out of the provisions of this Act the same shall be referred to and be settled by the Local Government Board or by an arbitrator appointed by them and the cost of the reference shall be in the discretion of the Local Government Board or of the arbitrator as the case may be.

Arbitration.

29. On the application of any of the councils at any time within six months after the expiration of five years from the passing of this Act and at any time within six months after the expiration of any subsequent period of five years the Local Government Board may after inquiry and previous notice thereof to the councils by order alter the number and proportion of members of the Board to be appointed by the councils or any of them and may make any provisions incident to or consequential on such alteration including an alteration in the number of members to form a quorum Provided that if the Local Government Board shall make any order under this section the proportion of members to be appointed by the councils or any of them respectively shall be based upon the assessable values of the property in the Rhymney portions of the districts of the Gelligaer Caerphilly Bedwellty and Mynyddislwyn Councils and of the parish of Machen Upper and upon the assessable value of the urban district of Rhymney and of

Power to
 alter number
 of members
 of Board.

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Provision in event of alteration of urban districts.

30. If at any time any new urban district is formed including the whole or any part of any of the constituent districts or of the rural district of St. Mellons or the boundaries of any of the constituent districts or of the said rural district are otherwise altered or the whole or any part of them is created or included in a municipal borough then and in every such case the Local Government Board may by order to be published as they shall direct make such provision as to them seems fit for adapting the provisions of this Act to the alterations so made and to the incidents and consequences thereof and every such order shall have effect as if the terms thereof were inserted in this Act.

PART III.

WORKS AND LANDS.

Power to make sewerage and sewage outfall works.

31. Subject to the provisions of this Act the Board may enter upon take and use all or any of the lands delineated upon the deposited plans and described in the deposited books of reference and may make maintain and work in and according to the lines situations and levels shown on the deposited plans and sections the sewerage works and sewage outfall works hereinafter described together with all necessary and proper intakes outfalls overflows sewers drains channels weirs sluices junctions syphons engines pumps boilers machinery culverts shafts tanks reservoirs manholes works buildings pipes storage and subsidiary sewers and conveniences connected therewith (that is to say) :—

Work No. 1 An outfall sewer commencing in the bed of the sea at low-water mark of ordinary tides near the sea boundary of the parish of Peterstone in the rural district of St. Mellons in the county of Monmouth at a point 118 chains or thereabouts measured in a south-south-westerly direction from the south-west corner of Peterstone Wentlloog Church and 81 chains or thereabouts measured in an east-by-southerly direction from the south-east corner of Newton Farm in the parish of Rumney in the county of Monmouth and terminating by a junction with Work No. 2 hereinafter described at a

point 53 chains or thereabouts measured in an easterly direction from the south-east corner of St. Mellons Church and 38 chains or thereabouts measured in a southerly direction from the south-east corner of the house called "Goitre" in the parish of St. Mellons : A.D. 1912.

Work No. 2 A tank or tanks and approach road thereto situated wholly in the said parish of St. Mellons to be constructed on enclosures numbered 253 252 251 381 383 384 and 380 on the $\frac{1}{2500}$ Ordnance map Monmouthshire Sheet No. 38-1 (second edition 1901) and Sheet No. 33-13 (second edition 1900) :

Work No. 3 An intercepting sewer commencing in the said parish of St. Mellons by a junction with Work No. 2 hereinbefore described at a point 26 chains or thereabouts measured in a south-westerly direction from the south-west corner of the house called "Melrose Hall" and 32 chains or thereabouts measured in a southerly direction from the south-west corner of the house called "Goitre" and terminating in the centre of the public road leading from Cefn-Llwyd Bridge to Michaelstone-y-Vedw 42 chains or thereabouts measured in a west-south-westerly direction from the south-west corner of Michaelstone-y-Vedw Church :

Work No. 4. An intercepting sewer commencing by a junction with Work No. 3 hereinbefore described at a point in the centre of the public road leading from Cefn-Llwyd Bridge to Michaelstone-y-Vedw 42 chains or thereabouts measured in a west-south-westerly direction from the south-west corner of Michaelstone-y-Vedw Church and terminating at a point on the left bank of the River Rhymney in the enclosure numbered 334 on the $\frac{1}{2500}$ Ordnance map Monmouthshire Sheet No. 27-5 (second edition 1900) 15 chains or thereabouts measured in a south-westerly direction from the south-west corner of the house called "Tyn-y-Coed" in the parish of Bedwas and 15 chains or thereabouts measured in a south-easterly direction from the north-west corner of enclosure No. 334 on the said Ordnance map :

Work No. 5 An intercepting sewer commencing by a junction with Work No. 4 hereinbefore described at a point on the left bank of the River Rhymney in the

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enclosure numbered 334 on the $\frac{1}{2500}$ Ordnance map Monmouthshire Sheet No. 27-5 (second edition 1900) 15 chains or thereabouts measured in a south-westerly direction from the south-west corner of the house called "Tyn-y-Coed" in the parish of Bedwas and 15 chains or thereabouts measured in a south-easterly direction from the north-west corner of enclosure numbered 334 on the said Ordnance map and terminating at a point on the public road 9 chains or thereabouts measured in a south-easterly direction from the south-west corner of the schools near "Maerdy House" in the urban district of Rhymney and 2 chains or thereabouts measured in a westerly direction from the western corner of enclosure numbered 155 on the $\frac{1}{2500}$ Ordnance map Monmouthshire Sheet No. 16-4 (second edition 1901).

Power to
make general
works.

32. Subject to the provisions of this Act the Board may within the limits of deviation shown on the deposited plans and sections make and maintain all such approaches retaining walls piers abutments embankments girders cantilevers bridges arches subsidiary and surface water sewers drains joists culverts penstocks excavations manholes ventilators flushing stations lamp-holes shafts tanks goits overflows pipes and other works and conveniences connected with the sewerage and sewage outfall works by this Act authorised as they may deem necessary.

Power to
deviate.

33. In constructing the works authorised by this Act the Board may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding ten feet upwards and to any extent downwards Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Period for
compulsory
purchase of
lands.

34. The powers of the Board for the compulsory purchase of the lands authorised by this Act to be taken shall cease after the expiration of three years from the passing of this Act.

Correction
of errors &c.
in deposited
plans and

35. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the

deposited books of reference the Board after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the counties of Glamorgan and Monmouth for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerks of the peace for the counties of Glamorgan and Monmouth and a duplicate thereof shall also be deposited with the clerk and such certificate and duplicate respectively shall be kept by such clerks of the peace and clerk respectively with the other documents to which the same relate and thereupon the deposited plans and books of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Board to take the lands and execute the works in accordance with such certificate.

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books of
reference.

36. Notwithstanding anything shown on the deposited plans the Board shall be restricted to an easement only for the purpose of constructing repairing maintaining and duplicating the outfall sewer (Work No. 1) in the common or commonable land known as Broad Street Common in the parish of Peterstone in the rural district of St. Mellons.

Limiting
amount of
commonable
land to be
acquired.

37.—(1) The Board may in lieu of acquiring any lands for the purpose of the outfall and intercepting sewers (Works Nos. 1 3 4 and 5) authorised by this Act acquire such easements and rights in such lands as they may require for the purpose of making maintaining cleansing repairing renewing and enlarging or duplicating such sewers and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts.

Power to
acquire ease-
ments only
for sewers.

(2) Provided that as regards any lands taken or used by the Board for the purpose of such sewers and for such works where they are laid underground the Board shall not (unless they give notice to treat for such lands and not merely for

A.D. 1912. easements therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Board.

Provisions
as to com-
pensation.

38. The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the land created after the first day of January one thousand nine hundred and twelve if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under this Act.

Costs of
arbitration
under Lands
Clauses
Acts.

39.—(1) The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Board award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Board by the claimant giving sufficient particulars and in sufficient time to enable the Board to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Board have been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Board to amend his statement in writing of the claim delivered by him to the Board in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Board if they object to the amendment and such amendment shall be subject to such terms enabling the Board to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and

as to costs of the inquiry and otherwise as to such judge A.D. 1912.
may seem just and proper under all the circumstances of the
case.

(3) Provided also that this section shall be applicable only
in cases where the notice to treat under the Lands Clauses
Consolidation Act 1845 either contained or was endorsed with a
notice of the effect of this section.

40. The Board in addition to any other lands acquired by
them in pursuance of this Act may by agreement purchase take
on lease acquire and hold further lands for the purposes of this
Act but the quantity of lands held by the Board in pursuance
of this section shall not at any time exceed twenty acres
Provided that the Board shall not create or permit the creation
or continuance of any nuisance on any such lands nor erect
any buildings thereon except offices and dwellings for persons
in their employment and such buildings and works as may be
incident to or connected with the purposes of this Act.

Power to
purchase
additional
lands by
agreement.

41. Persons empowered by the Lands Clauses Acts to sell
and convey or release lands may if they think fit subject to the
provisions of those Acts and of this Act grant to the Board
any easement right or privilege (not being an easement right
or privilege of water in which persons other than the grantors
have an interest) required for the purposes of this Act in
over or affecting any such lands and the provisions of the
said Acts with respect to lands and rentcharges so far as
the same are applicable in this behalf shall extend and apply
to such grants and to such easements rights and privileges as
aforesaid respectively.

Persons
under dis-
ability may
grant ease-
ments &c.

42. The Board may use so much of the lands hereinafter
referred to as are delineated on the deposited plans and as shall
be acquired by the Board under the powers of this Act for the
purpose of receiving storing or otherwise disposing of sewage
and they may erect make provide lay down and maintain on
those lands such tanks embankments and other works as they
think requisite for the purposes aforesaid The lands herein-
before referred to are situate in the parish of St. Mellons and
are—

Lands for
sewage
works.

Certain lands in the parish of St. Mellons containing by
admeasurement 17 acres 2 roods and 5 perches or there-
abouts and comprising enclosures or parts of enclosures

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Nos. 253 252 251 381 383 384 and 380 on the $\frac{1}{2500}$ Ordnance map Monmouthshire Sheet No. XXXVIII--1 (2nd edition 1901) and Sheet No. XXXIII--13 (2nd edition 1900).

Period for
completion
of works.

43. If the works authorised by this Act and delineated on the deposited plans and sections are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Board for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as are then completed :

Provided that the Board may subject to the consent and approval of the Local Government Board which consent and approval that Board is hereby authorised to give construct subject to the provisions of this Act such improvements and alterations of the works constructed under the provisions of this Act as they from time to time deem necessary.

Power to
retain sell
&c. lands.

44. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Board may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds of
sale of sur-
plus lands.

45. So long as any lands remain to be acquired by the Board under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing in pursuance of the powers of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Board shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and

such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Local Government Board Provided that— A.D. 1912.
 —

(1) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase :

(2) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

46. Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade. Works below high-water mark to be subject to approval of Board of Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Board and the amount of such cost shall be a debt due from the Board to the Crown and shall be recoverable as a Crown debt or summarily.

47. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Board on in over through or across tidal lands or tidal water or of the intended site of any such work the Board shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Board to the Crown and be recoverable as a Crown debt or summarily. Survey of works by Board of Trade.

48. If a work constructed by the Board on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the Abatement of work abandoned or decayed.

A.D. 1912. work or any part of it and restore the site thereof to its former condition at the expense of the Board and the amount of such expense shall be a debt due from the Board to the Crown and be recoverable as a Crown debt or summarily.

Lights on
works during
construction.

49. The Board shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. If the Board fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Permanent
lights on
works.

50. The Board shall at the outer extremity of their works below high water exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House of Deptford Strond shall from time to time direct.

If the Board fail to comply in any respect with the provisions of the present section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Time of dis-
charge of
sewage into
sea.

51. The Board shall cause the sewage to be discharged into the sea by means of the outfall sewer (Work No. 1) within a period extending from two hours before high water until two hours after high water or within such other period as the Local Government Board may on the application of the Board after inquiry allow. Provided that in case of heavy rain or emergency the Board may discharge the contents of any sewers and works of the Board or any part thereof at any period of the tide from the said outfall sewer.

Power to
dredge.

52. In connexion with and for the purposes of the construction and subsequent maintenance and repair of the outfall sewer (Work No. 1) and other works and conveniences by this Act authorised the Board may dredge scour deepen or alter so much of the bed of the sea and the foreshore thereof as may be necessary for those purposes and may without making any payment or compensation therefor appropriate and dispose of any shingle sand and clay removed by or during any such dredging scouring deepening or alteration. Provided that no materials

excavated or dredged under the provisions of this section shall be deposited in any place below high-water mark otherwise than in such position and under such restrictions as may be fixed by the Board of Trade. A.D. 1912.

53. Any material excavated by the Board in the construction of the outfall or intercepting sewers authorised by this Act shall absolutely vest in and belong to the Board and may be dealt with removed and disposed of by them in such manner as they think fit. Application of material excavated in construction of sewers.

54.—(1) The Board during the execution and for the purposes of any works authorised by this Act may temporarily break up stop up divert and interfere with any street and may for any reasonable time prevent all persons other than those bonâ fide going to or returning from any house or any station or other premises of any railway company in such street from passing along and using the same. Temporary stoppage of streets.

(2) The Board shall provide reasonable access for persons so bonâ fide going to or returning from any such house station or other premises.

55. Subject to the other provisions of this Act the Board may for the purposes of and in connexion with the several works authorised by this Act and within the limits of deviation of such works as shown on the deposited plans raise sink or otherwise alter the position of any sewer or drain gas and water main or pipe electric cable or pole and may remove any other obstruction making in case of alterations proper substituted works in the meantime and causing as little detriment and inconvenience as circumstances admit and making compensation to any person who suffers damage by any such alteration Provided that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former of such Acts apply Provided that the Board shall not alter or remove or in any way interfere with any telegraphic line (as defined by the Telegraph Act 1878) of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878. Alteration of position of mains and pipes.

56. For the purpose of making or maintaining any of the works by this Act authorised the Board may open and break up any public road in under across or over which any of such Breaking up of roads and streets.

A.D. 1912. works are authorised to be constructed Provided that where they open or break up any such road they shall be subject to the following obligations:—

- (1) They shall with all convenient speed complete the work on account of which they open or break up the road and subject to the making and maintenance of the said work fill in the ground and make good the surface and restore the portion of the road to as good a condition as that in which it was opened or broken up and clear away all surplus paving or metalling material or rubbish occasioned thereby:
- (2) They shall in the meantime cause the place where the road is opened or broken up to be fenced and watched and to be properly lighted at night.

Dwelling-houses for persons in employ of Board.

57. The Board may purchase and take on lease and may erect fit up maintain and let upon any lands for the time being belonging to or leased by them dwelling-houses for persons employed by them for the purposes of their undertaking.

Board empowered or may be required to underpin or otherwise strengthen houses near works.

58. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet of any of the works by this Act authorised it may be necessary to underpin or otherwise strengthen the same Therefore the Board at their costs and charges may and if required by the owners and lessees of any such house or buildings shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

- (1) At least one calendar month's notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or buildings so intended or so required to be underpinned or otherwise strengthened:
- (2) Each such notice if given by the Board shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the clerk:
- (3) If any owner lessee or occupier of any such house or buildings or the Board as the case may require shall within twenty-one days after the giving of such

notice give a counter notice in writing that he or they as the case may be disputes the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer to be agreed upon or in case of difference to be appointed at the instance of either party by the Board of Trade: A.D. 1912.

- (4) Such referee shall forthwith upon the application of either party proceed to inspect such house or buildings and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Board may and shall proceed forthwith so to underpin or strengthen the said house or buildings:
- (5) The Board shall be liable to compensate the owners lessees and occupiers of every such house or buildings for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:
- (6) If in any case in which any house or buildings shall have been underpinned or strengthened on the requisition of the Board such underpinning or strengthening shall prove inadequate for the support or protection of the house or buildings against further injury arising from the execution or use of the works of the Board then and in every such case the Board shall make compensation to the owners lessees and occupiers of such house or buildings for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:
- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Board from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:

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- (9) Nothing in this section shall repeal or affect the application of section 92 of the Lands Clauses Consolidation Act 1845.

Sewage
may be
discharged
into River
Rhymney
during floods
&c.

59. The Board may during times when the flow through their sewers at any point exceeds in quantity the rate of 120 gallons a day per head of the population of the districts draining into such sewers above that point discharge into the River Rhymney at any or every such point the said flow in excess of the said rate and the Board may after previous notice in writing to the Board of Conservators of the Rhymney Fishery District during the time when the sewers and works authorised by this Act or any part of them are being repaired cleansed altered or renewed or are stopped up or interfered with by any accident discharge the contents of such sewers and works or any part thereof into any part of the River Rhymney.

Right of
constituent
authorities
to use sewers
of Board.

60. For the purposes of this Act all sewers made by the Board shall vest in and be under the control of the Board but each constituent authority shall be entitled as of right to have communication from any of their sewers into the sewers of the Board subject to the following provisions:—

- (1) The communications between the sewers of each constituent authority and those of the Board shall be made by the Board at the expense of the constituent authority and such communication shall when made be wholly under the control of the Board and the Board shall at their own cost be at liberty at any time to alter such communication:

- (2) Any constituent authority proposing to construct any new sewer for the purpose of bringing the sewage of their district or of any part thereof into any sewer of the Board by a new communication with such last-mentioned sewer shall three months at least before they commence the construction of such new sewer send to the Board plans and sections thereof showing the proposed places of communication and the proposed level at such places of the intended new sewer and the place of every such communication and the level thereat of every such new sewer shall be such as shall be determined by the Board or in case of dispute by arbitration as in this Act provided:

- (3) A constituent authority shall not be entitled to cause or permit to pass into any sewer or work of the Board any liquid matter substance or thing which would be injurious to the construction use repair inspection or efficiency of the sewers or works of the Board or which would cause or be likely to cause silting up corrosion or decay of the materials thereof or accidents thereto : A.D. 1912.
- (4) Each constituent authority shall so far as practicable prevent storm water and surface and subsoil water from flowing into the sewers and branch sewers belonging to them and through such sewers into the main trunk sewers of the Board :
- (5) Each constituent authority shall so far as practicable restrict the flow into the sewers of the Board from any sewer connected therewith so that it shall at no time exceed the rate of one hundred and twenty gallons per head per day of the population draining into such sewer and for this purpose shall where practicable construct and maintain to the reasonable satisfaction of the Board in each of their sewers connected with the sewers of the Board and in such position near to the junction thereof as shall be reasonably approved by the Board a storm overflow or storm overflows :
- (6) The constituent authorities shall not permit any drain sewer surface drain eye hole or pipe conveying or capable of conveying sewage surface water subsoil water or other matter from any land not situate within their respective districts either directly or indirectly to be connected or to communicate with the sewers branch sewers or drains belonging to them so as to drain into the main trunk sewers of the Board and shall not permit any such sewer surface water subsoil water or other matter to pass directly or indirectly therein unless with the consent in writing of the Board :
- (7) If in the case of any sewer any constituent authority shall fail to comply with any of the requirements of this section the Board may refuse to allow any such

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sewer to be or remain connected with their sewers or works and shall have power to do all things necessary to give effect to such refusal.

Communica-
tion with
sewers of
Board for
isolated
premises.

61.—(1) For the purpose of the drainage of any buildings or premises situate within any constituent district which cannot be conveniently drained into the sewers of the constituent authority for that district but can be conveniently drained into a sewer of the Board the Board subject to such conditions as they shall prescribe may at the request of such constituent authority or (with the consent of that authority) of the owner of such buildings or premises permit a communication or connexion to be made with their said sewer.

(2) From and after any such permission as aforesaid shall have been given the sewer of the Board shall for the purposes of section 23 (Power of local authority to enforce drainage of undrained houses) of the Public Health Act 1875 be deemed to be a sewer which the constituent authority are entitled to use.

(3) Provided that any such communication or connexion as aforesaid shall be made by the Board at the expense of the constituent authority or of the owner of the building or premises thereby connected with the sewer of the Board.

Agreements
between
Board and
local autho-
rities other
than con-
stituent
authorities
as to com-
municating
with sewers
of Board.

62. For the purpose of enabling the Board to dispose of the sewage of any area not being the area of one of the constituent districts the Board may agree with the local authority of such area to allow the sewers therefrom to communicate either directly or indirectly with the sewers or works vested in or under the control of the Board but such agreement and communication shall be subject to the consent of the council (if any) through whose sewers any such indirect communication with the sewers of the Board is effected.

Discontinu-
ance of
existing
sewerage
works of
councils.

63. The councils within three months after the completion of the sewers and other works by this Act authorised shall cease to discharge into the River Rhymney or any of its tributaries whether directly or indirectly any sewage or sewage effluent whether the same shall be purified or disinfected or not from any sewer drain or other work belonging to them Provided that this section shall only apply to the St. Mellons Council in respect of the parish of Bedwas and the Rhymney portion of Machen Upper.

64. In addition to the powers vested in them by this Act the Board shall have the powers of a sanitary authority within the meaning of the Rivers Pollution Prevention Act 1876 and the constituent district shall be deemed to be their district.

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Board to
have powers
under Rivers
Pollution
Act.

65. Subject to the provisions of this Act the Board on the one hand and any Government department board of conservators county local or other authority board or body or any company body or person having the control or management of or any interest in any river stream railway street road sewer water gas or other pipes wires apparatus or works on the other hand may enter into and carry into effect agreements and arrangements with respect to the mode of construction maintenance and user of any sewers and works of the Board and as to the acquisition and appropriation of lands and property of the Board or of any such department board of conservators authority board body company or person for the purposes of such construction maintenance and user and the formation and user of any streets roads and public places.

Power to
enter into
agreements.

66. After three months after the completion of the sewers and other works by this Act authorised it shall not be lawful for any person to do any of the following things (that is to say) :—

Prohibition
of sending
sewage into
River
Rhymney.

- (1) To open into the River Rhymney or any of its tributaries any sewer drain pipe or channel with intent or in order thereby to provide for the flow or passage of sewage or other offensive or injurious matter :
- (2) To cause or without lawful excuse to suffer any sewage or other offensive or injurious matter to flow or pass into the River Rhymney or any of its tributaries down or through any sewer drain pipe or channel existing prior to the completion of the sewers or other works of the Board whether before used for such purpose or not :
- (3) To open into any stream canal cut or watercourse communicating with the River Rhymney or any of its tributaries any sewer drain pipe or channel with intent or in order thereby to provide for the flow or passage of sewage or other offensive or injurious matter in such manner that the same will be carried or be likely to be carried by through or out of that

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stream canal cut or watercourse into the River Rhymney or any of its respective tributaries :

- (4) To cause or without lawful excuse to suffer any sewage or other offensive or injurious matter to flow or pass into any stream canal cut or watercourse communicating as aforesaid down or through any sewer drain pipe or channel existing prior to the completion of the sewers or other works of the Board whether before used for such purpose or not in such manner that the same will be carried or be likely to be carried by through or out of that stream canal cut or watercourse into the River Rhymney or any of its respective tributaries.

If any person does anything in contravention of this section he shall for every such offence on the prosecution of the Board be liable on summary conviction to a penalty not exceeding twenty pounds and to a further penalty not exceeding five pounds for every day on which the offence is continued after notice of the offence given to him by the Board and after such conviction the Board may stop up at any point within the said urban districts or the said parishes the sewer drain pipe or channel in respect of which the offence is committed and for that purpose may do all works that appear to them requisite and may enter on any lands and the Board may recover summarily as a civil debt from the offender with costs all expenses reasonably incurred by them in so doing.

Provided that this section shall not apply (1) to the city of Cardiff (2) to any part of the rural district of Llandaff and Dinas Powis except to the portion thereof the sewage from which shall be disposed of by the Board under the provisions of the section of this Act of which the marginal note is "For protection of Llandaff and Dinas Powis Rural District Council" or (3) to any portion of the rural district of St. Mellons other than (a) the parish of Bedwas and the Rhymney portion of Machen Upper and (b) any portion of the remainder of the said rural district the sewage from which shall be disposed of by the Board under the provisions of the section of this Act of which the marginal note is "For protection of St. Mellons Rural District Council."

Penalty for
making un-
authorised

67.—(1) Any person not being an officer or servant of the Board or not being duly authorised in writing by the Board

in that behalf who shall make or attempt to make or cause or attempt to cause to be made any communication or connexion with any sewer or other work belonging to the Board for the purpose of connecting therewith any sewer drain channel or pipe for the conveyance thereto or the transmission thereinto of any solid liquid or gaseous matter whatsoever or shall otherwise interfere with or cause to be interfered with the sewers or other works of the Board or shall do or cause to be done any act which shall obstruct or tend to obstruct the free flow or passage of liquid or solid matter therein or which may otherwise prejudicially interfere with or affect the free or efficient working of the said sewers or works shall be liable on summary conviction to a penalty not exceeding ten pounds and in addition thereto a further penalty not exceeding five pounds for every day on which the offence is proved to have existed and until the same shall be discontinued.

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—
communica-
tion &c. with
Board's
sewers.

(2) In addition to the provisions of subsection (1) of this section the Board if they think fit may at any time whether before or after conviction as aforesaid cut off or close any unauthorised connexion or communication as aforesaid or take such steps as to them may seem requisite for making good the sewers interfered with or may do any act which may be reasonably necessary for restoring the free and efficient working of their sewers and works and may recover summarily as a civil debt from the offender the cost and expenses of so doing.

(3) The provisions of this section shall be in addition to and not in substitution for and shall not prejudice any other remedy or mode of proceeding which may otherwise be available to the Board.

68. The provisions of section 305 of the Public Health Act 1875 shall apply for the purposes of this Act not only in the cases therein mentioned but also where the Board desire to exercise the powers thereof for the purpose of discovering or ascertaining any communication with or opening into any of the sewers of the Board or the flowing or passing of any matter into such sewers or into any drain channel or watercourse communicating therewith.

Extension of
section 305
of Public
Health Act
1875 to
Board.

69.—(1) As soon as the intercepting and outfall sewers and works authorised by this Act are complete and ready to receive the sewage of the constituent district the sewer belonging to

Transfer of
existing
sewer of
Rhymney

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 Council to
 Board.

the Rhymney Council situate between a point on the public road nine chains or thereabouts measured in a south-easterly direction from the south-west corner of the schools near Maerdy House and two chains or thereabouts measured in a westerly direction from the western corner of plot 155 on the $\frac{1}{2500}$ Ordnance map Monmouthshire Sheet No. XVI.-4 (2nd edition 1901) and a point situate on the public road from Rhymney to Bute Town half a chain or thereabouts from the centre of the bridge over the River Rhymney and five chains or thereabouts measured in a westerly direction from the north-east corner of "Capel Seion" at the junction of Carno Street and Clarence Row on the $\frac{1}{2500}$ Ordnance map Monmouthshire Sheets X.-15 and X.-16 (2nd edition 1901) shall be transferred to and vested in the Board to be held used exercised and enjoyed by the Board for the purposes and according to the provisions of this Act as part of the sewerage system of the Board authorised by this Act.

(2) The compensation to be paid by the Board to the Rhymney Council for the said sewer shall failing agreement between the council and the Board be determined by arbitration in the manner provided by the Public Health Act 1875 with respect to arbitrations under that Act.

(3) Any moneys received by the Rhymney Council under this section shall be applied in the repayment of any outstanding loans or in such other manner as may be approved by the Local Government Board.

Payments to
 be made to
 Caerphilly
 Council.

70.—(1) The Board shall pay to the Caerphilly Council on the first day of April and the first day of October in every year a sum of money equal in amount to the total sum paid by the Caerphilly Council in the preceding half year as interest on and as an instalment of principal of or to a sinking fund in respect of so much of any moneys borrowed by the Caerphilly Council before the eleventh day of May one thousand nine hundred and twelve as shall have been expended upon (A) the construction of the main sewer from Tarangmorthwyd Farm Llanbradach to the Gwaun-y-bara Sewage Farm and (B) the construction or provision of tanks carriers pipes and other works upon the said sewage farm The first payment to be made by the Board under this subsection shall be made on the first day of April one thousand nine hundred and thirteen and shall include such an apportioned part of all moneys so paid by the

Caerphilly Council as aforesaid during the half year ended on the thirtieth day of September one thousand nine hundred and twelve as shall be attributable to any period subsequent to the passing of this Act. A.D. 1912.

(2) The Board shall also pay to the Caerphilly Council on the first day of January one thousand nine hundred and thirteen or on such earlier date as may be agreed between the Board and the Caerphilly Council—

(A) The sum of eight thousand three hundred and forty-two pounds being two-thirds of the cost of the Aber sewer of the Caerphilly Council:

(B) A sum of money equal to the expenses incurred by the Caerphilly Council between the tenth day of October one thousand nine hundred and eleven and the eleventh day of May one thousand nine hundred and twelve in obtaining expert advice and in preparing plans and estimates in connexion with the sewerage and the disposal of the sewage of the Rhymney portion of Caerphilly but not including any expenses incurred by the Caerphilly Council in opposing the Bill for this Act.

(3) If the Board fail to pay to the Caerphilly Council any moneys payable by the Board under the provisions of this section the same shall be a debt due to the Caerphilly Council by the Board and shall be recoverable with interest at the rate of four per centum per annum as from the date when the payment became due and full costs of suit in any court of competent jurisdiction.

(4) Any moneys received by the Caerphilly Council under subsections (1) (2) (B) and (3) of this section shall be carried to the credit of the district fund and general district rate of the urban district of Caerphilly and any moneys received by the Caerphilly Council under subsection (2) (A) of this section shall be applied in the repayment of any outstanding loans of the Caerphilly Council in respect of sewerage and sewage disposal works or in such other manner as may be approved by the Local Government Board.

(5) Any question which may arise between the Board and the Caerphilly Council under this section shall failing agreement be referred to and determined by a single arbitrator to be

A.D. 1912. appointed (unless otherwise agreed upon) by the President of the Institution of Civil Engineers and the Arbitration Act 1889 shall apply to the reference.

(6) The Caerphilly Council shall produce to the Commissioners of Inland Revenue a King's Printer's copy of this Act stamped with duty at the rate of two shillings and sixpence for every one hundred pounds and also for any fractional part of one hundred pounds of the moneys payable by the Board under subsection (2) of this section and in default of such production within six months after the passing of this Act the duty with interest thereon at the rate of five per cent. per annum shall become a debt from the Caerphilly Council to His Majesty.

PART IV.

PROTECTIVE PROVISIONS.

For protec-
tion of
Caerphilly
Urban
District
Council.

71. The following provisions for the protection of the Caerphilly Council shall unless otherwise agreed in writing between the Board and the Caerphilly Council apply and have effect (that is to say):—

(1) In this section the expression "the Caerphilly District" means the urban district of Caerphilly the expression "the intercepting sewers" means the intercepting sewers (Works Nos. 4 and 5) by this Act authorised the expression "sewage farm" means the sewage farm of the Caerphilly Council known as the Gwaun-y-bara Farm and coloured pink on the plan drawn on the indenture of conveyance dated the ninth day of February one thousand eight hundred and ninety-nine and made between John Glynnne Richard Homfray and others and the Caerphilly Council the expression "sewage farm work" means and includes any carrier pipe drain tank or other work of the Caerphilly Council on the sewage farm and the expression "the surveyor" means the surveyor of the Caerphilly Council:

(2) The Board shall not without the consent in writing of the Caerphilly Council purchase or acquire any portion of the sewage farm or any estate or right in over or through the same other than an easement or

right of constructing the intercepting sewers under the sewage farm and of repairing maintaining and using the sewers after construction The amount to be paid for the acquisition of such easement or right shall be ascertained in case of difference in the manner provided by the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and the provisions of those Acts shall apply to and in respect of the acquisition of such easement or right as fully as if the same were lands within the meaning of those Acts: A.D. 1912.

(3) The intercepting sewers where the same shall cross the sewage farm shall be constructed of brickwork in cement mortar or of steel tubing and in either case shall be founded on and surrounded by portland cement concrete and all works affecting the sewage farm shall be executed according to such plans and sections as shall have been previously submitted to and approved in writing by the surveyor or in case the surveyor shall unreasonably withhold his approval then as shall have been settled by an arbitrator and the Board shall not commence any such work until such plans and sections have been so approved or settled Provided that if the surveyor shall not within twenty-eight days after the submission to him of such plans and sections signify his approval or disapproval of the same he shall be deemed to have approved thereof:

(4) During the digging of any trench or other excavation or the execution of any work by the Board under or within ten feet of any sewage farm work and until such trench or excavation shall have been properly filled in and completed the Board shall support such sewage farm work in position and in the case of a carrier pipe or drain shall maintain the flow of sewage through the same and before the filling in or completion of such trench excavation or work the Board shall provide a suitable and proper foundation for such sewage farm work in such manner and of such materials as the surveyor shall reasonably require in order to protect the same from subsidence:

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- (5) The Board shall not intercept sever or alter the position of any sewage farm work except so far as may be necessary for the purpose of constructing or repairing the intercepting sewers and wherever it shall be necessary so to do the Board shall before intercepting severing or altering such work construct in such manner and position as the surveyor may reasonably require another similar work in lieu of and of equal capacity and convenience with the work so proposed to be intercepted severed or altered and such substituted work shall be connected by the Caerphilly Council at the cost of the Board with the existing sewage farm work so intercepted severed or altered and such cost shall on demand be paid by the Board to the council and the substituted work shall vest in the Caerphilly Council :
- (6) During any period when any trench or other excavation made by the Board on the sewage farm shall be open the Board shall separate the same by a sufficient fence from the lands adjoining thereto so as to protect persons cattle and sheep from injury :
- (7) The Board shall complete the intercepting sewers where situate on or under the sewage farm with all reasonable dispatch and shall forthwith after the completion thereof fill in any trench or other excavation to the reasonable satisfaction of the surveyor :
- (8) Notwithstanding the acquisition by the Board of any easement affecting the sewage farm the Caerphilly Council shall have full right and liberty of constructing repairing and using roads buildings drains pipes and other works upon across in and under the lands in respect of which such easement may have been acquired Provided that such rights shall not be exercised so as to endanger the safety or interfere with the proper maintenance of the works of the Board :
- (9) Where any works of the Board cross intersect or otherwise interfere with the River Rhymney or the banks thereof adjoining or near the sewage farm the Board shall adequately protect the banks of the said river so

as to prevent any damage thereto in consequence of the works of the Board: A.D. 1912.

- (10) The powers of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof as incorporated with this Act shall not extend or apply to the sewage farm except for the purpose of depositing spoil excavated therefrom:
- (11) The construction of any work by the Board under or in any way affecting any main sewer of the Caerphilly Council shall be carried out under the supervision (if given) and to the reasonable satisfaction of the surveyor and according to plans and sections to be submitted to and approved by him or in case he shall unreasonably withhold his approval to be settled by an arbitrator and such work shall not be commenced until such plans and sections have been so approved or settled. Provided that if the surveyor shall not within twenty-eight days after the submission to him of such plans and sections signify his approval or disapproval of the same he shall be deemed to have approved thereof:
- (12) Any question by this section required to be determined by an arbitrator and any difference which may arise under this section between the Board and the Caerphilly Council or the surveyor (except differences to which the provisions of the Lands Clauses Acts apply) shall be settled by an arbitrator to be agreed upon between the parties or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

72. The following provisions for the protection of the Llandaff and Dinas Powis Rural District Council (in this section referred to as "the council") shall notwithstanding anything in this Act contained apply and have effect except so far as may be otherwise agreed in writing under seal between the council and the Board:—

For protection of Llandaff and Dinas Powis Rural District Council.

- (1) If within twelve months after the passing of this Act the council give notice to the Board that they require

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the Board to dispose of the sewage from the parishes of Van Rudry Rhydygwern and Llanvedw in the district of the council or from any area within such parishes specified in the notice the council as from the date when the sewers Work No. 3 and Work No. 4 by this Act authorised have been completed and brought into operation shall be entitled to have communication with the said sewers for the purpose of disposing of such sewage upon such terms and subject to such conditions as may failing agreement be settled by arbitration :

- (2) If at any later date the council give notice to the Board that they require the Board to dispose of the sewage of any area within the said parishes not specified in the notice (if any) given under subsection (1) or in any subsequent notice given under this subsection the council shall be entitled to have further communication with the said sewers or with the sewers of the council already so communicating for the purpose of disposing of such sewage as from such date and upon such terms and conditions as failing agreement shall be determined by arbitration :
- (3) Any notice given under subsections (1) or (2) of this section shall be accompanied by a plan showing the area the sewage wherefrom is proposed to be discharged into any sewer of the Board and also by plans and sections of the sewers by which the sewage of such area is to be conveyed into the sewer of the Board and such plans and sections shall show the proposed place of communication with the sewer of the Board and the level at such place of the sewer by which the communication is to be made :
- (4) If the Board shall object to any area specified in any notice given under this section the arbitrator in any arbitration under this section shall have the power of fixing and shall fix the area (being either greater or less than specified in the notice) the sewage from which is to be disposed of by the Board :
- (5) In addition to the terms and conditions agreed or determined by arbitration as aforesaid subsections (1) (3) (4) (5) (6) and (7) of the section of this Act

whereof the marginal note is "Right of constituent authorities to use sewers of Board" shall apply to the council as if the council were a constituent authority: A.D. 1912 .

- (6) In case default be made in the payment of any sum due from the council under any agreement or award made pursuant to the provisions of this section whether such sum shall have been demanded or not such sum shall be deemed to be a debt due from the council to the Board together with interest at the rate of four per centum per annum such interest to commence thirty days from the date at which such payment became due:
- (7) The council shall not discharge into the River Rhymney or any of its tributaries whether directly or indirectly any sewage or sewage effluent whether the same shall be purified or disinfected or not from any sewer drain or other work belonging to them within any area in the district of the council the sewage from which shall be disposed of by the Board under the provisions of this section:
- (8) For the purpose of the drainage of any buildings or premises situate within any of the before-mentioned parishes which cannot be conveniently drained into any sewer of the council which is connected with a sewer of the Board but can be conveniently drained into a sewer of the Board the provisions of the section of this Act of which the marginal note is "Communication with sewers of Board for isolated premises" shall apply and have effect as if the before-mentioned parishes had been a constituent district and the council had been a constituent authority:
- (9) The construction of the sewers Work No. 3 and Work No. 4 by this Act authorised under or in any way affecting any road or bridge vested in or under the jurisdiction of the council shall be carried out under the supervision and to the reasonable satisfaction of the council and according to plans and sections to be submitted to and reasonably approved by the council before such works are commenced Provided

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that if for one month after such plans and sections shall have been submitted to the council they shall not have expressed their approval or disapproval of the said plans and sections they shall be deemed to have approved thereof:

- (10) In case of any dispute arising between the Board and the council under this section such dispute shall be determined by an arbitrator to be appointed (unless otherwise agreed upon) upon the application of either of the parties by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply thereto.

For protec-
tion of St.
Mellons
Rural
District
Council.

73. For the protection of the St. Mellons Council the following provisions shall unless otherwise agreed in writing between the Board and the St. Mellons Council have effect (that is to say):—

- (1) As soon as the sewers and works by this Act authorised are ready for use the St. Mellons Council shall be entitled to and shall drain into the intercepting sewers (Works Nos. 3 and 4) by this Act authorised the sewage from the areas in the parishes of St. Mellons Michaelstone-y-Vedw and Machen Lower which are coloured pink upon the map signed in duplicate by Hugh Percival Raikes on behalf of the Board and Gomer Sweeting Morgan on behalf of the St. Mellons Council and the St. Mellons Council shall be entitled for that purpose to have communications from any of their sewers into the said intercepting sewers of the Board:
- (2) The St. Mellons Council may at any time or times hereafter on giving to the Board not less than three months' notice in writing elect to drain into the said intercepting sewers (Works Nos. 3 and 4) the sewage from any additional area or areas in the said parishes of St. Mellons Michaelstone-y-Vedw and Machen Lower and the parish of Marshfield other than the areas mentioned in subsection (1) hereof and for that purpose shall be entitled to have from time to time further communications with the said intercepting sewers (Works Nos. 3 and 4) of the Board Provided

that on any such communication being made the St. Mellons Council shall thereafter continuously drain into the said intercepting sewers of the Board the sewage from the area in respect of which such communication has been made : A.D. 1912.

Provided further that in case the St. Mellons Council shall at any time or times elect to drain the sewage from any such additional area or areas into the said intercepting sewers (Works Nos. 3 and 4) of the Board they shall in addition to the plans which they are required to furnish under the third subsection of this section furnish to the Board plans and sections necessary for showing the additional area or areas the sewage wherefrom it is proposed to discharge into the said intercepting sewers of the Board and the sewers and intended sewers therein and shall also in every such case furnish to the Board particulars of the assessable value of the property and hereditaments within the proposed additional area or areas :

- (3) Three months at least before they commence the construction of any sewer which is proposed to communicate with the intercepting sewers (Works Nos. 3 and 4) the St. Mellons Council shall send to the Board plans and sections thereof showing the proposed place of communication and the proposed level at such place of the intended new sewer and the place of every such communication and the level thereat of every such sewer shall be such as shall be agreed between the Board and the St. Mellons Council or failing agreement may be determined by arbitration as in this section provided :
- (4) Subsections (1) (3) (4) (5) (6) and (7) of the section of this Act whereof the marginal note is "Right of constituent authorities to use sewers of Board" shall apply to the St. Mellons Council with respect to any such area as aforesaid as if the St. Mellons Council were a constituent authority in respect of such area :
- (5) The St. Mellons Council shall pay to the Board in respect of the use of the sewers and works of the Board used for the discharge of sewage coming from the aforesaid parishes such annual sum as shall be

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equivalent to a rate of five pence in the pound on the assessable value of the property and hereditaments in any areas for the time being drained into the said intercepting sewers (Works Nos. 3 and 4) of the Board under this section. Any such area as aforesaid is hereafter in this section referred to as a "contributory area":

Provided that the sum to be paid by the St. Mellons Council to the Board under this section shall not in any year be less than sixty pounds:

For the purposes of this section the assessable value of a contributory area shall be deemed to be the assessable value of the property and hereditaments in the contributory area for the purposes of a rate for special expenses and the payments to be made by the St. Mellons Council under this subsection in respect of a contributory area shall be deemed to be special expenses within the meaning of the Public Health Act 1875 incurred in respect of such area as a contributory place:

(6) Any payment payable by the St. Mellons Council under this section in respect of any contributory area shall accrue from the date on which the communication between the sewers of the contributory area and the sewers of the Board shall have been completed but such payments whether for a whole year or for a proportionate part of a year shall become due and payable on the twenty-ninth day of September in each year and for the purpose of determining the amounts of any such payments the same shall if necessary be apportioned:

(7) In case default shall be made in the payment of any sum payable to the Board by the St. Mellons Council under the provisions of this section such sum shall be deemed to be a debt due from the St. Mellons Council to the Board together with interest at the rate of four per centum per annum such interest to commence thirty days from the date at which such payment became due:

(8) At the expiration of the period of thirty years from the time when the St. Mellons Council shall first use

the sewers of the Board under the provisions of this section and at the expiration of every subsequent period of seven years either the St. Mellons Council or the Board shall be at liberty to apply to the other to have the rate of payment hereunder revised and in default of agreement the matter shall be referred to arbitration under the provisions in this section contained: A.D. 1912.

- (9) For the purpose of the drainage of any buildings or premises situate within any contributory area which cannot be conveniently drained into any sewer of the St. Mellons Council in such area but can be conveniently drained into the sewers and works of the Board the provisions of the section of this Act of which the marginal note is "Communication with sewers of Board for isolated premises" shall apply and have effect as if such contributory area had been a constituent district and the St. Mellons Council had been a constituent authority:
- (10) The St. Mellons Council shall upon the request of the Board forthwith furnish to the Board a copy of the valuation list in force at the date of the completion of the sewers and works of the Board showing the assessable values of all property and hereditaments in the rural district draining into the sewers and works of the Board and shall also from time to time when required by the Board furnish to them a copy of the current valuation list showing the assessable values aforesaid and such valuation list shall be certified by the clerk to the St. Mellons Council as the correct valuation list for the time being of the said property and hereditaments:
- (11) The Board shall construct such weirs at each of the overflows below Machen Mill on the sewers by this Act authorised as may be necessary to ensure that the contents of such sewers shall not be discharged into the River Rhymney except so far as is authorised by the section of this Act of which the marginal note is "Sewage may be discharged into River Rhymney during floods &c." and the St. Mellons Council may by any duly authorised officer at all reasonable times

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inspect such weirs so as to ascertain that the contents of the said sewers are only discharged into the river in accordance with the provisions of the said section :

- (12) The sewers and works of the Board so far as the same may be situate in the roads repairable by the St. Mellons Council shall be ventilated by means of shafts and not by means of manholes The Board shall make provision against nuisance being caused during the process of emptying the storage tanks and outfall sewer by the escape of sewage from ventilators on the outfall sewer (Work No. 1) :
- (13) The construction of any works by this Act authorised under or in any way affecting any road or bridge vested in or under the jurisdiction of the St. Mellons Council shall be carried out under the supervision and to the reasonable satisfaction of the surveyor to the St. Mellons Council and according to plans and sections to be submitted to and reasonably approved by the council before such works are commenced Provided that if for one month after such plans and sections shall have been submitted to the council they shall not have expressed their approval or disapproval of the said plans and sections they shall be deemed to have approved thereof :
- (14) Any difference arising between the Board and the St. Mellons Council or their surveyor shall be referred to and determined by an arbitrator to be appointed (in default of agreement) on the request of either party by the President of the Institution of Civil Engineers.

For protection of
Glamorgan
County
Council.

74. For the protection of the Glamorgan County Council (in this section referred to as "the county council") the following provisions unless otherwise agreed in writing between the Board and the county council shall notwithstanding anything in this Act contained or shown on the deposited plans and sections have effect (that is to say) :—

- (1) All works to be executed by the Board in the exercise of any of the powers of this Act in across or in any way affecting any main road or county or main road

bridge or any approach thereto shall be constructed and laid under the superintendence (if given) and to the reasonable satisfaction of the surveyor to the county council and in accordance with plans and sections to be submitted to and approved of by the said surveyor in writing before the commencement of the work or in case of difference between the Board and the said surveyor to be settled by an arbitrator to be appointed as hereinafter provided. Provided that if the said surveyor shall not express his disapproval of such plans and sections within fourteen days after the same shall have been submitted to him he shall be deemed to have approved thereof: A.D. 1912.

- (2) The Board shall give to the county council not less than seven clear days notice in writing before commencing to execute any works affecting any main road or county or main road bridge and all works shall be so executed as not in any way to stop or unreasonably interfere with the traffic of any main road:
- (3) In addition to the provisions in that behalf contained in this Act whenever the Board shall have opened or broken up any main road in the exercise of their statutory powers they shall complete the work and fill in the ground to the reasonable satisfaction of the county council and the reinstatement and making good of the road shall include the application of a sufficient layer of surface metalling of the same specification as that employed by the county council for the particular road and where the road is ordinarily repaired by the use of a steam or other roller shall include the use of such roller on the places where the road has been broken up until the surface thereof has been made uniform with the unbroken surface adjoining the same to be done at the expense of the Board and to the reasonable satisfaction of the county council:
- (4) Any additional expense which the county council may incur in widening or altering the Caerphilly and Bedwas main road in the parish of Van or the bridge carrying that road over the River Rhymney or the approaches to such bridge by reason of the existence

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of the intercepting sewer (Work No. 4) shall be paid to the county council by the Board :

- (5) Any dispute or difference arising under this section between the county council and the Board shall be referred to and settled by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protection of Monmouthshire Commissioners of Sewers.

75. For the protection of the Monmouthshire Commissioners of Sewers (in this section referred to as "the commissioners") the following provisions shall unless otherwise agreed in writing between the commissioners and the Board apply and have effect (that is to say) :—

- (1) The Board shall not discharge any sewage or the contents of any sewers into any of the reens or other works under the jurisdiction of the commissioners or into any streams or rivers from which the water supply in such reens is or may be derived except into the River Rhymney or its tributaries :
- (2) Notwithstanding anything contained in this Act or shown on the deposited plans referred to in this Act the Board shall not (except so far as may be necessary during the construction of the outfall sewer (Work No. 1) by this Act authorised) in any way alter or interfere with any reen or other work under the jurisdiction of the commissioners nor (except as aforesaid) construct any work or do anything which may tend to lessen the water supply in any of the reens and the Board shall not (except as aforesaid) directly or indirectly abstract water from such reens or from any streams or rivers from which the water supply in the reens is derived :
- (3)—(a) Where the outfall sewer (Work No. 1) by this Act authorised is constructed through the Wentlooge Level it shall be constructed and maintained so as to prevent except during the construction of the works any water either in the reens or ditches or elsewhere in the said level from being in any way diminished diverted or

drained away from such reens ditches or elsewhere or from being carried along the line of sewer; A.D. 1912.

(b) No part of the outfall sewer (Work No. 1) by this Act authorised where it passes under the Pill Du Reen shall be constructed at a higher level above Ordnance datum than eleven feet and no part of the said sewer where it passes under the Rhosog fawr Reen shall be constructed at a higher level above Ordnance datum than ten feet;

(c) All works affecting any reen or other work of the commissioners shall be carried out renewed and maintained in accordance with plans and sections to be reasonably approved by the surveyor acting for the commissioners and under his supervision (if given) and in all things at the expense of the Board who shall pay the commissioners the reasonable cost incurred by them in employing an inspector to inspect the said works during the construction thereof in so far as they affect the reens and works of the commissioners:

(4) If the effect of the construction or maintenance of any of the works of the Board is to diminish divert or drain away the waters aforesaid the Board shall pay compensation for any loss or damage which may be incurred or suffered by the owners or occupiers of any land within the level or by the commissioners by reason of the diminution diversion or draining away of any such water Provided that all questions arising between the parties as to the diminishing diverting or draining away of water as aforesaid and any compensation to be paid in respect thereof shall be determined by arbitration as hereinafter provided:

(5) The outfall sewer (Work No. 1) by this Act authorised where it passes under the sea embankment of the commissioners shall be constructed in tunnel and such tunnel for a distance of ten feet on either side of the said embankment shall be filled with concrete outside the said sewer:

(6) Where the outfall sewer (Work No. 1) by this Act authorised passes under the southern boundary of the

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wharf land on the foreshore the Board shall fill up the trench excavated for the construction of the sewer with stone or rubble rock for a distance of forty feet on the land side of the said southern boundary of the wharf land to the reasonable satisfaction of the commissioners :

- (7) Any additional cost involved in the maintenance or repair of the said sea embankment or any other works of the commissioners by reason of the construction and maintenance of the said outfall sewer or any works or operations of the Board in connexion therewith shall be repaid by the Board to the commissioners and the Board shall indemnify the commissioners against any claim or demand which may be made in consequence of any failure of the sea embankment by reason of such works or operations :
- (8) If any damage is caused to any of the reens or works of the commissioners or to the Wentlooge Level or the lands in that level by the overflow of sewage from the sewers tanks or other works of the Board by this Act authorised or by the bursting leakage or failure of such sewers tanks or other works or by subsidence or through any other cause whatever owing to the construction or use of such sewers tanks or other works the Board shall make good to the commissioners and the owners and occupiers of lands in the Wentlooge Level all loss which may be incurred by them and all costs and expenses to which they may be put and shall effectually indemnify the commissioners against any claim or demand which may be made in consequence or arising out of any such overflow bursting leakage failure or subsidence :
- (9) If any difference shall arise under the provisions of this section such difference shall be referred to and determined by an engineer to be nominated by the parties or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

76. For the protection of the Powell Duffryn Steam Coal Company Limited (who are in this section referred to as "the owners") the following provisions shall unless otherwise agreed between the Board and the owners have effect (that is to say):—

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For protec-
tion of
Powell
Duffryn
Steam Coal
Company
Limited.

- (1) Nothing in the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 in its application to the lands of the owners or to the sewers and works of the Board where the same are intended to pass through or under the lands of the owners shall be deemed to empower the Board to take any coal ironstone or fireclay of the owners otherwise than by agreement and the owners in working any mines of coal ironstone or fireclay under the said lands shall not be liable for or to make good any damage occasioned to the sewers and works of the Board by working the said mines in the usual and ordinary course pursued in the district:
- (2) The Board shall not except by agreement purchase any land or property of the owners or acquire any estate or right other than an easement or right of constructing maintaining and repairing sewers or works in connexion therewith in over or upon the same respectively:
- (3) The Board shall construct maintain and keep in repair all their sewers and works in through and upon the lands of the owners and shall make full compensation to the owners for any loss or damage caused by the leakage from or bursting of any of the said sewers or works:
- (4) All supporting piers carrying any sewer or other works of the Board in or alongside the River Rhymney shall be either circular or have cut water ends thereto both up and down stream:
- (5) Should the Board in the construction or maintenance of the works hereby authorised require to do any act or thing necessitating the interference with or removal of any of the electric power transmission poles cables gas water steam or other mains works or plant of the owners such works shall be carried out by the owners at the cost in all respects of the Board:

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- (6) No manholes or ventilators shall be placed on the property of the owners except at such points as shall be reasonably approved in writing by the owners or their authorised agent :
- (7) The Board shall as far as practicable so construct the sewers and works by this Act authorised as not to obstruct any outlets culverts or pipes of the owners conveying water to or from the River Rhymney or interfere with the efficiency of the weirs across the said river. If it should be necessary to interfere with any such outlets culverts or pipes the Board shall provide such substituted works as may be reasonably necessary for conveying such water to or from the river :
- (8) When any of the works by this Act authorised shall be commenced upon any property of the owners the Board shall unless prevented by any circumstances beyond their control proceed with due diligence to complete the same with all reasonable dispatch :
- (9) The Board shall make full compensation to the owners for all damage and loss occasioned to them by any acts of the Board their officers or contractors or any workmen employed by them or any of them whether during construction or maintenance of any works authorised by this Act and shall pay to the owners all charges reasonably incurred by them for inspecting and watching the sewers and other works of the Board during construction or alteration thereof :
- (10) The provisions of the section of this Act the marginal note of which is "Prohibition of sending sewage into River Rhymney" shall not apply to any effluent water or other liquid matter discharged into the River Rhymney or any tributaries of such river from any coal mines of the owners or to any water arising from coal washing or coke cooling if passed through proper and efficient settling tanks :
- (11) Every sewer and the works connected therewith where the same are constructed by the Board through the property of the owners shall be constructed according to plans and sections to be previously submitted to

and reasonably approved by them or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for twenty-one days after such plans and sections shall have been submitted to the owners they shall fail to give notice to the engineer of the Board of their objections thereto they shall be deemed to have approved thereof: A.D. 1912.

- (12) Nothing contained in this Act shall at any time hereafter be deemed to empower the Board to at any time divert alter or interfere with any railway sidings embankments or works of the owners except temporarily so far as may be necessary for constructing maintaining and repairing the sewers and works by this Act authorised:
- (13) Notwithstanding the grant of any easement for and the construction of any sewer the owners shall have full right and liberty of constructing or altering railway sidings embankments and similar works and of erecting or altering buildings or other works connected with their colliery operations upon the lands through which any such sewer shall pass. Provided that such rights shall not be exercised so as to endanger the safety or interfere with the proper maintenance of any such sewer:
- (14) Any such sewer shall so far as practicable be so constructed and maintained as to prevent the River Rhymney from becoming blocked or flooded or the water of the river being in any way diverted or drained away in consequence of any works of the Board:
- (15) The Board shall so far as practicable so construct and maintain their works where the same will pass through or under any railways sidings or roads which afford access to or egress from the premises of the owners as not to interrupt or interfere with such access or egress:
- (16) Notwithstanding anything shown on the deposited plans the intercepting sewer (Work No. 5) by this Act authorised where it passes through or into the

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property of the owners shall not be constructed north of the line shown by red colour between the points respectively marked A and B and C and D on the plan signed in duplicate by the Right Honourable Lord Ribblesdale the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (hereinafter called "the signed plan") one copy whereof has been deposited in the Parliament Office of the House of Lords and the other copy in the Private Bill Office of the House of Commons Provided that if the owners lessees and occupiers of the lands coloured pink on the signed plan grant (subject to the payment therefor by the Board of such compensation as failing agreement may be determined by arbitration) such easements and rights as may be required to enable the sewer to be constructed in the green line on the signed plan the Board shall construct such sewer in the green line If the sewer is constructed in the green line the owners shall prior to such construction remove the chimney stack marked H on the signed plan to the level of the ground and indemnify the Board against all damage or loss sustained by the owners in consequence of the construction of the sewer in the green line :

- (17) The Board shall not in the construction of any sewer or other works permit any blasting operations between the points marked C and D and E and F on the signed plan nor shall they permit any blasting operations within one hundred feet of any pole or support carrying electric power transmission lines or cables or of any building or any gas water or other mains works or plant of the owners except between the hours of six p.m. on Saturday and six p.m. on Sunday and after thirty-six hours' previous notice to the owners In all blasting operations on the property of the owners or within one hundred feet of any such transmission line or cable the shot holes shall be protected with chain mats or other effective methods to the satisfaction of the owners' engineer to prevent stones or debris from flying :

- (18) No part of the works by this Act authorised shall be constructed within a distance of five feet of any pole belonging to the owners shown on the deposited plans for carrying electric transmission lines. If it should become necessary to construct any sewer or work within a distance of five feet of any other pole or of any support to any pole the Board shall pay to the owners the reasonable cost incurred by them in removing such pole or support outside such distance from the said sewer or work. If any part of any excavation or trench in connexion with such works is made within a distance of ten feet from any such pole or support the sides thereof shall be adequately timbered to prevent the falling in of the sides of any such excavation or trench or the subsidence or movement of the adjoining land and so much of such timbering as the engineer of the owners may require shall be left in the excavation or trench and such concrete or other filling shall be put in as the said engineer may reasonably consider necessary for the safety and support of any such pole or support as aforesaid : A.D. 1912.
- (19) In the case of any^{*} pipes laid in the River Rhymney where that river passes through the property of the owners the joints of the pipes shall be so formed and constructed as to avoid catching any floating or submerged matter brought down by the river and the formation of and the method of constructing and laying such joints shall be such as may be reasonably approved for that purpose by the engineer of the owners :
- (20) The provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated with this Act which may enure for the protection or benefit of the owners their lessees and tenants :
- (21) Any difference which may at any time arise between the owners and the Board under this section other than subsection (2) hereof shall be settled unless otherwise agreed in manner provided by the Arbitration Act 1889.

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For protec-
tion of
Viscount
Tredegar.

77. For the protection of the Right Honourable Godfrey Charles Viscount Tredegar and his sequels in estate or other the owner or owners for the time being of the Tredegar Settled Estates (hereinafter referred to as "the owner") the following provisions shall unless otherwise agreed between the owner and the Board have effect (that is to say):—

- (1) It shall not be lawful for the Board under the powers of this Act or of any Act incorporated therewith without the consent of the owner to enter upon take or use any lands of the owner or to purchase or acquire any right or interest in any property belonging to the owner other than an easement or right of constructing through the lands of the owner maintaining repairing and using subject to the provisions of this Act and the Acts incorporated therewith the outfall and intercepting sewers (and any works connected therewith) authorised by this Act and the Board shall pay to the owner for such easement or right such a sum as may be agreed or failing agreement be settled in manner provided by the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement:
- (2) No manholes ventilators or shafts shall be constructed in or upon any lands of the owner except such as shall be necessary for the proper maintenance and ventilation of the said sewers:
- (3) No overflow weir or other similar work shall be constructed by the Board between Michaelstone Bridge and the extreme southern boundary of the parish of Machen Upper except at a point near to and to the south-east of the house known as Gwern-y-Goitre and such overflow shall only be used for the purpose of discharging into the River Rhymney in accordance with the provisions of the section of this Act of which the marginal note is "Sewage may be discharged into River Rhymney during floods &c." the contents of the sewer which cannot be discharged by the reasonable use of overflows to the north of the extreme southern boundary of the said parish of Machen Upper:

(4) The Board shall during the construction and repair A.D. 1912.

under the provisions of this Act of any works on the lands of the owner between Michaelstone Bridge and the extreme southern boundary of the parish of Machen Upper if required by the owner pay to him the cost of the employment by him of two additional keepers or watchers for the protection of the game and for the prevention of poaching and trespassing on his estates adjoining the sewer (Work No. 4) between the points aforesaid:

(5) Nothing in the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 in its application to the lands of the owner or to the sewers and works of the Board where the same are intended to pass through or under the lands of the owner shall be deemed to empower the Board to take any coal or ironstone of the owner except by agreement and the owner and his lessees in working any mines of coal or ironstone under the said lands shall not be liable for or to make good any damage caused to such sewers or works by working the said mines in the usual and ordinary course pursued in the district:

(6) The Board shall make full compensation to the owner and his lessees and tenants for all damages and loss occasioned to them or any of them by any acts of the Board their officers or contractors or any workmen employed by them or any of them whether during construction or maintenance of any works of the Board:

(7) The Board shall make good the drainage and sewerage of the lands of the owner where interfered with by any sewer or work of the Board:

(8) All fences gates watercourses roads conveniences and other matters and things belonging to the owner or his tenants which may be interfered with by the Board during construction or maintenance of any sewer or works authorised by this Act shall forthwith after such interference be made good by the Board and the surface of the ground wherever and whenever disturbed by the Board for the purposes of any such

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sewer or works shall be restored as nearly as may be to its former level and state :

- (9) The Board shall construct maintain and keep in repair all their sewers and works in through and upon the lands of the owner and shall compensate the owner his lessees and tenants for and against any loss or damage caused by the leakage from or bursting of any of the said sewers or works :
- (10) The provisions of the section of this Act the marginal note whereof is "Prohibition of sending sewage into River Rhymney" shall not apply to any effluent water or other liquid matter discharged into the River Rhymney or into any tributary of such river or into any stream canal cut or watercourse communicating therewith from any coal mines belonging to the owner :
- (11) Nothing in this Act shall at any time hereafter be deemed to empower the Board at any time to divert alter or interfere with any railways sidings tramroads embankments or works of the owner except temporarily so far as may be necessary for constructing maintaining and repairing the sewers authorised by this Act :
- (12) Notwithstanding the grant of any easement for and the construction of any sewer or works by the Board under this Act the owner shall have full right and liberty of constructing or altering railways sidings tramroads embankments roads drains sewers pipes culverts cables and other works and of tipping spoil and other material and of erecting or altering buildings upon the lands through which any such sewer or works of the Board shall pass Provided that such rights shall not be exercised so as to endanger the safety or interfere with the proper maintenance of any such sewer or works :
- (13) The sewers and works to be constructed under this Act shall so far as practicable be so constructed and maintained as to prevent the water of the River Rhymney or any tributary thereof from being in any way diverted or drained away in consequence of any works of the Board :

(14) The Board shall so far as practicable so construct and maintain their works authorised by this Act where the same will pass through or under any railways sidings tramroads or roads which afford access to or egress from any lands of the owner as not to interrupt or interfere with such access or egress: A.D. 1912.

(15) The provisions of this Act shall not be deemed to interfere with the rights or reputed rights of the owner to execute and carry out such works as may be from time to time reasonably necessary to preserve or repair the banks of the River Rhymney or of any tributary thereof as fully and effectually as the owner could have done but for the passing of this Act Provided that such rights shall not be exercised so as to endanger the safety or interfere with the proper maintenance of the sewers and works of the Board:

(16) The Board shall carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the execution of their works in or under any lands of the owner (including any road to the subsoil of which the owner is entitled) and (subject to the rights of the Crown) the same shall be the absolute property of the owner and shall be handed over to him by the Board:

(17) The provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated therewith which may enure for the protection or benefit of the owner his lessees or occupiers:

(18) Any difference which may at any time arise between the owner and the Board with respect to any question under this section (other than differences to which the provisions of the Lands Clauses Acts apply) shall be settled unless otherwise agreed in manner provided by the Arbitration Act 1889.

78. For the protection of Charles Theodore Halswell Kemeys-Tynte or other the owners or owner for the time being of the estates situate partly in the counties of Monmouth and Glamorgan known as the Cefn-Mably Estates (in this section referred to as

For protection of Charles Theodore Halswell Kemeys-Tynte.

A.D. 1912. — “the owner”) the following provisions shall unless otherwise agreed in writing between the owner and the Board have effect (that is to say):—

- (1) It shall not be lawful for the Board under the powers of this Act or of any Act incorporated with this Act without the consent of the owner to enter upon take or use any lands of the owner or to purchase or acquire any right or interest in any property belonging to the owner other than—

(a) So much of the lands within the limits of deviation shown on the deposited plans for the tank or tanks and approach road thereto (Work No. 2) by this Act authorised as is situate at a greater distance than 100 feet from the watercourse adjoining the north-western boundary of the property numbered on the deposited plans 31 in the parish of St. Mellons;

(b) An easement or right of constructing maintaining repairing and using a continuation of the said approach road through so much of the said lands numbered on the deposited plans 31 as aforesaid and 33 as are within 100 feet of the said watercourse;

(c) An easement or right of constructing through the lands of the owner maintaining repairing and using subject to the provisions of this Act and the Acts incorporated therewith the sewers and works connected therewith authorised by this Act;

and the Board shall pay to the owner for the lands and easements or rights to be acquired under this subsection such a sum as may be agreed or failing agreement be settled in manner provided by the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement:

- (2) Notwithstanding anything shown on the deposited plans no part of the tank (Work No. 2) or the works connected therewith shall be constructed within two hundred feet of the eastern limit of deviation of the said work and no ventilator or manhole shall be constructed within one hundred and fifty yards of

the farm known as Faendre-Fawr The said tank A.D. 1912.
shall be covered with earth and turfed or sown with
grass seed : —

- (3) If the supply of water on the lands of the owner afforded by the Nant Mwlan or the watercourses (a) referred to in subsection (1) of this section (b) on the south-eastern side of the property numbered on the deposited plans 28 in the parish of St. Mellons and (c) adjoining the northern side of the road numbered on the said plans 11 in the parish of Michaelstone-y-Vedw be diminished or polluted and the owner proves that such diminution or pollution is due to the construction or failure of any works of the Board or to the execution of any repairs alterations or renewals of any such works the Board shall make full compensation to the owner and his tenants for any loss or damage which he or they may suffer through the diminution or pollution of the supply of water afforded by the said brook or watercourse :
- (4) The Board shall not remove or disturb the pipe leading from the tank of the owner situate in the parish of Michaelstone-y-Vedw to the house known as Began and if the yield of water from the springs in the Mwlan Wood which feed the said tank be diminished or injuriously affected and the owner proves that such diminution or injury is due to the construction or failure of the works of the Board or to the execution of any repairs alterations or renewals of any such works the Board shall make full compensation to the owner and his tenants for any loss or damage which he or they may suffer through the diminution of or injury to the supply derived from the said springs :
- (5) No overflow weir or other similar work shall be constructed by the Board on the lands of the owner known as the Cefn-Mably Estate north of the point in the parish of St. Mellons where the centre line of the sewer (Work No. 3) as shown on the deposited plans leaves the road to the north of the house known as Pistyll-yr-achddu but the owner shall if so requested by the Board grant to the Board free of

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cost the easement or right of constructing through the lands of the owner maintaining repairing and using an outfall or overflow pipe from the said point in a westerly direction to the River Rhymney for the purpose of enabling the Board to discharge the contents of the sewer into the River Rhymney in accordance with the provisions of the section of this Act of which the marginal note is "Sewage may be discharged into River Rhymney during floods &c." :

- (6) The Board shall during the construction and repair under the provisions of this Act of any works on the lands of the owner if required by the owner pay to him the cost of the employment by him of two additional keepers or watchers for the protection of the game and for the prevention of poaching and trespassing on the Cefn-Mably Estate :
- (7) The Board shall make good the drainage and sewerage of the lands of the owner where interfered with by any of the works of the Board :
- (8) All fences roads conveniences and other matters and things belonging to the owner or his tenants which may be interfered with by the Board during the construction or maintenance of the works authorised by this Act shall forthwith after such interference be made good by the Board and the surface of the ground wherever and whenever disturbed by the Board for the purposes of the said works shall be restored as nearly as may be to its former level and state :
- (9) The Board shall keep in repair all their works situate on the lands of the owner and shall compensate the owner and his tenants for and against any loss or damage caused by the leakage from or bursting of any of their works :
- (10) The Board shall also make full compensation to the owner and his tenants for all damage and loss occasioned to them or any of them respectively by any acts of the Board their officers or contractors or any workmen employed by them or any of them whether during construction or maintenance of any works of the Board :

- (11) Notwithstanding anything in this Act or the acquisition of any easement for and the construction of any works of the Board the owner shall have full right and liberty of constructing altering and maintaining roads bridges buildings drains pipes and other works upon the lands of the owner in respect of which such easement has been acquired Provided that such right shall not be exercised so as to endanger the safety or interfere with the proper maintenance of any works of the Board : A.D. 1912.
- (12) The provisions of this Act shall not be deemed to interfere with the rights or reputed rights of the owner to execute and carry out such works as may be from time to time reasonably necessary to preserve or repair the banks of the River Rhymney or of any tributary thereof as fully and effectually as the owner could have done but for the passing of this Act Provided that such rights shall not be exercised so as to endanger the safety or interfere with the proper maintenance of the works of the Board :
- (13) The provisions of the section of this Act the marginal note whereof is "Prohibition of sending sewage into River Rhymney" shall not apply to any effluent water or other liquid matter discharged into the River Rhymney or any of its tributaries or any stream canal cut or watercourse communicating therewith from any coal mines belonging to the owner :
- (14) The Board shall carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the execution of their works in or under any lands of the owner (including any road to the subsoil of which the owner is entitled) and (subject to the rights of the Crown) the same shall be the absolute property of the owner and shall be handed over to him by the Board :
- (15) If any difference shall arise between the owner and the Board under this section (other than differences to which the provisions of the Lands Clauses Acts apply) the same shall be referred to an arbitrator to be agreed upon or failing agreement to be appointed

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by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference.

For protec-
tion of
owners of
Llanbradach
and Ystrad
Mynach
Estates.

79. For the protection of Clara Thomas and her sequels in estate or other the owner or owners for the time being of the Llanbradach Estate in the county of Glamorgan and for the protection of Ellen Thomas and the trustees of the will of Edward Llewellyn Thomas deceased and their sequels in estate or other the owner or owners for the time being of the Ystrad Mynach Estate in the counties of Glamorgan and Monmouth (all of whom are hereinafter in this section included in the term "the owners") the following provisions shall unless otherwise agreed between the Board and the owners apply and have effect (that is to say) :--

- (1) The provisions of the section of this Act whereof the marginal note is "Prohibition of sending sewage into River Rhymney" shall not apply to any effluent water or other liquid matter discharged into the River Rhymney or into any tributaries of such river from any coal mines belonging to the owners:
- (2) Nothing in the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 in its application to the lands of the owners or to the sewers and works of the Board where the same are intended to pass through or under the lands of the owners shall be deemed to empower the Board to take any coal or ironstone of the owners otherwise than by agreement and the owners in working any mines of coal or ironstone under the said lands shall not be liable for or to make good any damage occasioned to the sewers and works of the Board by working the said mines in the usual and ordinary course pursued in the district:
- (3) The Board shall not except by agreement purchase any land or property of the owners or acquire any estate or right other than an easement or right of constructing maintaining and repairing sewers or works in connexion therewith in over or upon the same respectively:
- (4) The Board shall make good the drainage and sewerage of the lands of the owners where interfered with by the sewers and works of the Board:

- (5) All fences gates watercourses roads conveniences and other matters and things belonging to the owners which may be interfered with by the Board during construction or maintenance of the sewers and works by this Act authorised shall forthwith after such interference be made good by the Board and the surface of the ground wherever and whenever disturbed by the Board for the purposes of the said sewers and works shall be restored as nearly as may be to its former level and state: A.D. 1912.
- (6) The Board shall construct maintain and keep in repair all their sewers and works in through and upon the lands of the owners and shall compensate the owners their lessees and occupiers for and against any loss or damage caused by the leakage from or bursting of any of the said sewers or works:
- (7) The Board shall make full compensation to the owners and their lessees and occupiers for all damages and loss occasioned to them or any of them respectively by any acts of the Board their officers or contractors or any workmen employed by them or any of them whether during construction or maintenance:
- (8) The provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated herewith which may enure for the protection or benefit of the owners their lessees or occupiers:
- (9) Any difference which may from time to time arise between the owners and the Board with respect to any question under this section shall be settled unless otherwise agreed in manner provided by the Arbitration Act 1889.

80. For the protection of the Marquis of Bute (hereinafter referred to as "the Marquis") which expression shall when used in this section include his heirs and assigns the following provisions shall have effect except so far as may be otherwise agreed between the Board and the Marquis (viz.):—

For protec-
tion of
Marquis of
Bute.

- (1) It shall not be lawful for the Board under the powers of this Act or of any Act incorporated therewith without the consent of the Marquis to enter upon

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take or use any lands of the Marquis or to purchase or acquire any right or interest in any property belonging to the Marquis other than an easement or right of constructing through the lands of the Marquis maintaining repairing and using subject to the provisions of this Act and the Acts incorporated therewith the sewers (and any works connected therewith) authorised by this Act and the Board shall pay to the Marquis for such easement or right such a sum as may be agreed or failing agreement be settled in manner provided by the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement:

- (2) Nothing in the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 in its application to the lands of the Marquis or to the sewers and works of the Board where the same are intended to pass through or under the lands of the Marquis shall be deemed to empower the Board to take any coal or ironstone of the Marquis otherwise than by agreement and the Marquis in working any mines of coal or ironstone under the said lands shall not be liable for or to make good any damage caused to the sewers and works of the Board by working the said mines in the usual and ordinary course pursued in the district:
- (3) Notwithstanding the grant of any easement for and the construction of any sewer or works by the Board under this Act the Marquis shall have full right and liberty of constructing or altering railways sidings tramroads embankments roads drains sewers pipes culverts cables and other works and of tipping spoil and other material and of erecting or altering buildings upon the lands through which any such sewer or works of the Board shall pass Provided that such rights shall not be exercised so as to endanger the safety or interfere with the proper maintenance of any such sewer or works:
- (4) Notwithstanding anything shown on the deposited plans and sections the intercepting sewer (Work No. 4) by this Act authorised between the points respectively

marked M and N on the plan signed in duplicate by Sir Francis William Lowe the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy whereof has been deposited in the Parliament Office of the House of Lords and the other copy in the Private Bill Office of the House of Commons) shall not without the consent of the Marquis be constructed otherwise than as nearly as reasonably may be in the line shown in red on the said plan :

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- (5) Any difference which may at any time arise between the Marquis and the Board with respect to any question under this section (other than differences to which the provisions of the Lands Clauses Acts apply) shall be settled unless otherwise agreed in the manner provided by the Arbitration Act 1889.

81. For the protection and benefit of John Capel Hanbury his successors and assigns (in this section referred to as "the owner") the following provisions shall unless otherwise agreed between the Board and the owner apply and take effect (that is to say) :—

For protec-
tion of John
Capel
Hanbury.

- (1) Nothing in the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 in its application to the lands of the owner or to the sewers and works of the Board where the same are intended to pass through or under the lands of the owner shall be deemed to empower the Board to take any coal or ironstone of the owner otherwise than by agreement and the owner in working any mines of coal or ironstone under the said lands shall not be liable for or to make good any damage occasioned to the sewers and works of the Board by the working of the said mines in the usual and ordinary course pursued in the district :

- (2) The Board shall not except by agreement purchase any land or property of the owner or acquire any estate or right other than an easement or right of constructing maintaining and repairing sewers or works in connexion therewith in over or upon the same respectively :

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- (3) The Board shall construct maintain and keep in repair all their sewers and works in through or upon the lands of the owner and shall compensate the owner his lessees and occupiers for and against any loss or damage caused by the leakage from or bursting of any of the said sewers or works :
- (4) The Board shall make good the drainage and sewerage of the lands of the owner where interfered with by any sewer or work of the Board :
- (5) The provisions of the section of this Act the marginal note whereof is "Prohibition of sending sewage into River Rhymney" shall not apply to any effluent water or other liquid matter discharged into the River Rhymney or any tributary of such river from any coal mines belonging to the owner :
- (6) The provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated herewith which may enure for the protection or benefit of the owner his lessees or occupiers :
- (7) Any difference which may from time to time arise between the owner and the Board with respect to any question under this section shall be settled unless otherwise agreed in manner provided by the Arbitration Act 1889.

For protec-
tion of Earl
of Plymouth.

82. For the protection of the Right Honourable Robert George Earl of Plymouth and his sequels in title or estate (all of whom are in this section included in the expression "the owner") the following provision shall unless otherwise agreed between the owner and the Board have effect (that is to say) :—

The provisions of the section of this Act the marginal note whereof is "Prohibition of sending sewage into River Rhymney" shall not apply to any effluent water or other liquid matter discharged into the River Rhymney or any of its tributaries or any stream canal cut or watercourse communicating therewith from any coal mines belonging to the owner.

83. For the protection of the Cardiff Steam Coal Collieries Limited (who are in this section referred to as "the owner") the following provisions shall unless otherwise agreed between the Board and the owner have effect (that is to say):—

A.D. 1912.
 For protec-
 tion of
 Cardiff
 Steam Coal
 Collieries
 Limited.

- (1) Nothing in the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 in its application to the lands of the owner or to the sewers and works of the Board where the same are intended to pass through or under the lands of the owner shall be deemed to empower the Board to take any coal or ironstone of the owner otherwise than by agreement and the owner in working any mines of coal or ironstone under the said lands shall not be liable for or to make good any damage occasioned to the sewers and works of the Board by working the said mines in the usual and ordinary course pursued in the district:
- (2) The Board shall not except by agreement purchase any land or property of the owner or acquire any estate or right other than an easement or right of constructing maintaining and repairing sewers or works in connexion therewith in over or upon the same respectively:
- (3) The Board shall make full compensation to the owner for all damage and loss occasioned to him by any acts of the Board their officers or contractors or any workmen employed by them or any of them whether during construction or maintenance of any works authorised by this Act:
- (4) The provisions of the section of this Act the marginal note of which is "Prohibition of sending sewage into River Rhymney" shall not apply to any effluent water or other liquid matter discharged into the River Rhymney or any tributaries of such river from any coal mines of the owner:
- (5) Every sewer or conduit and works connected therewith where the same are constructed by the Board through the property of the owner shall be constructed according to plans and sections to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of

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this section. Provided that if for twenty-one days after such plans and sections shall have been submitted to the owner he shall fail to give notice to the engineer of the Board of his objections thereto he shall be deemed to have approved thereof:

- (6) Nothing contained in this Act shall at any time hereafter be deemed to empower the Board to at any time divert alter or interfere with any railway sidings embankments or works of the owner except temporarily so far as may be necessary for constructing maintaining and repairing the said conduit or sewer thereunder:
- (7) Notwithstanding the grant of any easement for and the construction of any conduit or sewer the owner shall have full right and liberty of constructing or altering railways sidings embankments and similar works and of erecting or altering buildings upon the lands through which such sewer or conduit shall pass Provided that such rights shall not be exercised so as to endanger the safety or interfere with the proper maintenance of the said conduit or sewer:
- (8) The sewer shall so far as practicable be so constructed and maintained as to prevent the water of the River Rhymney from being in any way diverted or drained away in consequence of any works of the Board:
- (9) The Board shall so far as practicable so construct and maintain their works where the same will pass through or under any railways sidings or roads which afford access to or egress from the premises of the owner as not to interrupt or interfere with such access or egress:
- (10) The provisions of this section shall be in addition to and not in derogation from any other provisions of this Act or any Act incorporated herewith which may enure for the protection or benefit of the owner his lessees or occupiers:
- (11) Any difference which may at any time arise between the owner and the Board with respect to any question under this section other than subsection (2) hereof shall be settled unless otherwise agreed in manner provided by the Arbitration Act 1889.

84. Notwithstanding anything in this Act contained or shown on the deposited plans and sections the following provisions for the protection of the Great Western Railway Company (in this section called "the Great Western Company") shall unless otherwise agreed between the Board and the Great Western Company apply and have effect (that is to say):—

A.D. 1912.
—
For protec-
tion of Great
Western
Railway
Company.

(1) The sewers authorised by this Act (hereinafter referred to as "the sewers") where the same are constructed under the railways or other property belonging to the Great Western Company or within twenty-five feet thereof shall be constructed of such materials as shall be reasonably approved by the principal engineer of the Great Western Company:

(2) The intercepting sewer (Work No. 5) where the same shall be carried under or within twenty-five feet of the viaduct carrying the Great Western Company's railway over the River Rhymney shall be constructed under the said viaduct in such position as to be situate as far as practicable equidistant from any of the piers or abutments thereof and the Board shall not in any way injure or interfere with the said piers or abutments or the foundations thereof and if by reason of the construction of the said intercepting sewer or of any works in connexion therewith it shall be necessary to underpin or otherwise strengthen or support the foundations of such piers or abutments the Board shall on demand repay to the Great Western Company the expenses reasonably incurred by them in so doing:

(3) The said sewers shall for the entire length of each such crossing under the said railways viaduct and property be laid and carried by means of an iron pipe founded on and surrounded by Portland cement concrete to be constructed and maintained by the Board so that no part thereof shall be less than three feet below the levels of the rails of the said railways at the respective points of crossing and only according to plans sections and particulars to be previously submitted to and reasonably approved by the principal engineer of the Great Western Company and all such works at such crossings and all

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maintenance repairs and renewals thereof shall be done and executed by the Board to the reasonable satisfaction in all respects and under the superintendence of such engineer and at such times as he shall approve and in all things at the expense of the Board and whenever any such works maintenance repairs or renewals are constructed they shall be so constructed executed and maintained that the said railways or any of the works thereof respectively shall not be injured nor the traffic upon the said railways in any way impeded or interfered with:

(4) If within twenty-eight days after the receipt of such plans sections and particulars the Great Western Company give to the Board notice that they desire themselves to execute any part of the works (other than the actual laying down of the sewers which shall be done by the Board) which will cross over or under any railway or work belonging to them the Great Western Company may themselves execute such part of the works and recover the reasonable costs thereof from the Board:

(5) If by reason of any works or proceedings of the Board or of their contractors or workmen or the failure leakage or bursting of the said sewers the said railways or either of them or any of the works or lands thereof shall be injured or damaged such injury or damage shall be forthwith made good by the Board at their expense and to the reasonable satisfaction of such engineer and in the event of their failing so to do or in case of emergency of which the said engineer shall be the sole judge the Great Western Company may make good the same and recover the reasonable expense thereof from the Board and if any interruption shall be caused to the traffic on the said railways by reason of any works of the Board or of any such failure leakage or bursting as aforesaid the Board shall make good and repay to the Great Western Company any loss damage or expense which they may sustain or be put to by reason of the construction or failure of the said sewers or in respect of the interruption to the traffic on the said railways:

- (6) The Board shall not without the consent in writing of the Great Western Company under their common seal purchase take enter upon or use temporarily or permanently any lands property or works of the Great Western Company or any estate right or easement privilege or authority in over or upon the same respectively or alter vary or interfere with the said railways or any of the respective works thereof or thereto appertaining except that the Board may purchase and the Great Western Company may and shall sell and grant to the Board such easement or right as may be necessary for carrying the said sewers under the railways of the Great Western Company according to the provisions hereinbefore prescribed and for repairing maintaining and renewing the same and the works thereof at such crossing The amount to be paid for the acquisition of such easement shall be ascertained in case of difference in the manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase of lands otherwise than by agreement and the easement or right so to be taken shall be deemed to be land so far as respects the proceedings for the acquisition thereof and also for the purpose of any arbitration :
- (7) The Board shall bear and on demand pay to the Great Western Company the reasonable expense of the employment by them during the making or maintenance of the said sewers under the said railways and property of the Great Western Company of a sufficient number of inspectors signalmen or watchmen for watching the said railways viaducts and works and the conduct of the traffic thereon with reference to and during the execution and maintenance of the said intended works and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of any person or persons in the employ of the Board with reference thereto :
- (8) Any additional expense which the Great Western Company may reasonably and properly incur in widening altering or maintaining their railway bridges or

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works by reason of the existence of any mains or pipes of the Board laid under the powers of this Act across or under the same shall be paid by the Board :

(9) If the Great Western Company hereafter require (of which they shall be the sole judges) to construct any additional or other works upon their lands or railways or to extend alter or repair their railways or works upon across over or under which any of the mains pipes or works of the Board may have been constructed or laid the Great Western Company may after giving the Board fourteen days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge after giving the longest notice possible divert support or carry the said works of the Board across over or under their lands railways or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be and so as not to prejudice the efficiency thereof without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that any works executed by the Great Western Company under this subsection shall be executed under the supervision (if given) and to the reasonable satisfaction of the engineer of the Board and that the Great Western Company shall not interrupt or interfere with the flow of sewage in the sewers of the Board :

(10) In case of any dispute arising between the Board and the Great Western Company touching any of the matters referred to in this section or of anything to be done hereunder such difference shall unless otherwise provided for be determined by an arbitrator to be appointed (unless otherwise agreed upon) upon the application of either of the parties in difference by the President of the Institution of Civil Engineers and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

85. For the protection of the Rhymney Railway Company (hereinafter referred to as "the Rhymney Company") the following provisions shall unless otherwise agreed between the Rhymney Company and the Board apply and have effect (that is to say) :—

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For protec-
tion of
Rhymney
Railway
Company.

(1) Notwithstanding anything shown on the deposited plans and sections the intercepting sewer (Work No. 5) by this Act authorised between the points respectively marked P and Q and R and S on the plan signed in duplicate by the Right Honourable Lord Ribblesdale the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred (hereinafter called "the signed plan") one copy whereof has been deposited in the Parliament Office of the House of Lords and the other copy in the Private Bill Office of the House of Commons shall not be constructed to the west or north-west of the red lines marked on such plan and so much of the sewer as shall be laid on the western bank of the River Rhymney within a distance of one hundred yards northwards of the Rhymney Company's weir in the river shall be laid in the centre of a puddle trench not less than two feet wider than the external diameter of the sewer (the puddle being carried from a depth of twelve inches below the invert of the sewer to the surface of the ground) and the said sewer shall be laid for such distance and across the weir or intake of the Rhymney Company under the superintendence (if given) and to the reasonable satisfaction of the engineer of the Rhymney Company and in accordance with plans sections and particulars to be previously submitted to and reasonably approved by him :

(2) Where the intercepting sewer (Work No. 5) by this Act authorised crosses under the Bargoed Pits Branch and New Tredegar Branch Railways of the Rhymney Company the Board shall construct the same of cast iron pipes laid upon the bed of the River Rhymney underneath the centre of the culverts carrying the said railways over the river :

A.D. 1912.

(3) The sewers and works by this Act authorised (hereinafter referred to as "the sewers") where they are constructed under any of the railways belonging to the Rhymney Company and on the lands of the Rhymney Company between the points marked R and S on the signed plan shall be constructed according to plans sections and particulars to be previously submitted to and reasonably approved by the engineer of the Rhymney Company and all such works (at such crossings) and between the said points and all maintenance repairs and renewals thereof shall be done and executed by the Board to the reasonable satisfaction in all respects and under the superintendence (if given) of such engineer and at such times as he shall approve and in all things at the expense of the Board and whenever any such works maintenance repairs or renewals are constructed they shall be so constructed executed and maintained that the said railways or any of the works thereof respectively shall not be injured nor the traffic upon the said railways in any way impeded or interfered with:

(4) If by reason of any works or proceedings of the Board or of their contractors or workmen or the failure leakage or bursting of the said sewers any of the works or property of the Rhymney Company shall be injured or damaged such injury or damage shall be forthwith made good by the Board at their expense and to the reasonable satisfaction of such engineer and in the event of their failing so to do or in case of emergency of which the said engineer shall be the sole judge the Rhymney Company may make good the same and recover the reasonable expense thereof from the Board and if any interruption shall be caused to the traffic on the said railways by reason of any works of the Board or of any such failure leakage or bursting as aforesaid the Board shall make good and repay to the Rhymney Company any loss damage or expense which they may sustain or be put to by reason of the construction or failure of the said sewers or in respect of the interruption to the traffic on the said railways:

- (5) The section of this Act of which the marginal note is A.D. 1912.
 "For protection of Great Western Railway Company" except subsections (1) (2) (3) and (5) thereof shall apply and have effect for the protection of the Rhymney Company as if the same were set out in this section with the substitution therein of the name of the Rhymney Company for the name of the Great Western Company.

86. In executing and maintaining the works by this Act authorised where the same will pass under or affect the railway works or property of the Brecon and Merthyr Tydfil Junction Railway Company (hereinafter called "the Brecon Company") the Board shall be subject to the following conditions:—

For protec-
 tion of
 Brecon and
 Merthyr
 Tydfil Junc-
 tion Railway
 Company.

- (1) All works to be done by the Board in the exercise of the powers conferred by this Act in any way affecting the railway works and property of the Brecon Company shall be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer for the time being of that company and in such manner and according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section Provided that if for fourteen days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Board of his objections thereto he shall be deemed to have approved thereof:
- (2) All such works which the Board may execute under this section shall be so constructed as to cause no obstruction to the access to or injury to the railway of the Brecon Company or interruption to the passage or conduct of traffic over the same and if in consequence of the execution of such works any obstruction is caused or any injury is done to the railway or any interruption be caused to the traffic the Board shall make full compensation to the Brecon Company in respect of such obstruction injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration as hereinafter provided:

A.D. 1912.

(3) The Board shall bear and on demand pay to the Brecon Company the reasonable expense of the employment by the Brecon Company during the execution repair or maintenance of any work affecting the railway of the Brecon Company of a sufficient number of inspectors watchmen and signalmen to be appointed by the Brecon Company for watching and signalling the same with reference to and during the execution of any such work of the Board and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Board or their contractors :

(4) The Board shall only acquire such an easement or easements under the railway lands and property of the Brecon Company as may be necessary for constructing or maintaining the works by this Act authorised and shall pay to the Brecon Company for such easement such a sum as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Consolidation Act 1845 :

(5) Any dispute or difference which may arise between the Brecon Company and the Board with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the Brecon Company or the Board and the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

For protec-
tion of Barry
Railway
Company.

87. In executing and maintaining the works by this Act authorised where the same will pass under or affect the railway works or property of the Barry Railway Company (hereinafter called "the Barry Company") the Board shall be subject to the following conditions:—

(1) All works to be done by the Board in the exercise of the powers conferred by this Act under the viaduct carrying the Barry Railway at Llanbradach or across

the line of the authorised railway of the Barry Company at Machen shall be executed under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer for the time being of that company and in such manner and according to plans and drawings to be previously submitted to and reasonably approved by him or in case of difference by an arbitrator appointed in pursuance of this section. Provided that if for twenty-one days after such plans and drawings shall have been submitted to the said engineer he shall fail to give notice to the Board of his objections thereto he shall be deemed to have approved thereof: A.D. 1912.

- (2) All such works which the Board may execute under this section shall be so constructed as to cause no obstruction to the access to or injury to the railway of the Barry Company or interruption to the passage or conduct of traffic over the same. The centre line of the sewer (Work No. 4) where it is constructed under or near to the said viaduct shall be not less than forty feet from the south-eastern corner (at ground level) of the nearest pier of the said viaduct:
- (3) The Board shall bear and on demand pay to the Barry Company the reasonable expense of the employment by the Barry Company during the execution repair or maintenance of any work referred to in subsection (1) of this section of a sufficient number of inspectors and watchmen to be appointed by the Barry Company for watching the railway and property of the Barry Company with reference to and during the execution of any such work of the Board and for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Board or their contractors:
- (4) The Board shall only acquire such easements under the railway lands and property of the Barry Company as may be necessary for constructing or maintaining the works by this Act authorised and shall pay to the Barry Company for such easements such a sum as may be agreed upon or failing agreement as shall be

A.D. 1912.

settled by arbitration in manner provided by the Lands Clauses Acts and for the purposes of those Acts such easements shall be deemed to be lands:

- (5) If by reason of any works or proceedings of the Board or of their contractors or workmen or the failure leakage or bursting of any of the works of the Board, the railways works or property of the Barry Company shall be injured or damaged such injury or damage shall be forthwith made good by the Board at their expense and to the reasonable satisfaction of the engineer of the Barry Company and in the event of their failing so to do or in case of emergency of which the said engineer shall be the sole judge the Barry Company may make good the same and recover the reasonable expense thereof from the Board and if any interruption shall be caused to the traffic on the said railways or any such injury or damage shall be caused to the railways works or property of the Barry Company by reason of any works of the Board or of any such failure leakage or bursting as aforesaid the Board shall make good and repay to the Barry Company any loss damage or expense which they may sustain or be put to:
- (6) If the sewer is constructed across the line of the authorised railway of the Barry Company at Machen before the Barry Company have commenced the construction of the railway the Barry Company shall so construct the railway over the sewer as not in any way to interfere with or injuriously affect the sewer and the sewer shall not without the consent in writing of the Barry Company which consent shall not be unreasonably withheld be constructed by the Board across the line of the authorised railway otherwise than in the line shown on the deposited plans:
- (7) Any dispute or difference which may arise between the Barry Company and the Board with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer

or other fit person to be appointed (in default of agreement) by the President of the Institution of Civil Engineers on the application of the Barry Company or the Board and the provisions of the Arbitration Act 1889 shall apply to any such arbitration. A.D. 1912.

PART V.

FINANCIAL PROVISIONS.

88.—(1) The Board may from time to time borrow at interest any sum or sums of money for the purposes following (that is to say) :— Power to borrow.

(A) For the purchase of lands and easements for and for the construction of the intercepting and outfall sewers and other works by this Act authorised the sum of two hundred and twenty-two thousand pounds ;

(B) For paying to the Caerphilly Council and the Rhymney Council respectively any sums required to be paid to those councils by the Board under subsection (2) (A) of the section of this Act of which the marginal note is “ Payments to be made to Caerphilly Council ” and under the section of this Act of which the marginal note is “ Transfer of existing sewer of Rhymney Council to Board ” the sums requisite for those respective purposes ;

(C) For working capital the sum of two thousand five hundred pounds ;

(D) For paying the costs charges and expenses specified in the section of this Act of which the marginal note is “ Costs of Act ” and the expenses specified in subsection (2) (B) of the section of this Act of which the marginal note is “ Payments to be made to Caerphilly Council ” the sums requisite for those respective purposes ;

and with the approval of the Local Government Board such further moneys as the Board may require for any of the purposes of this Act or otherwise in relation to the undertaking of the Board,

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(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Board may mortgage or charge the revenues of the Board.

Periods for
discharge of
loans.

89. The Board shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say):—

As to moneys borrowed for the purposes (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within fifty-five years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purposes (B) in the said section mentioned within thirty years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purpose (C) in the said section mentioned within ten years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purposes (D) in the said section mentioned within five years from the passing of this Act:

As to moneys borrowed with the approval of the Local Government Board within such period as they may think fit to sanction.

Borrowing
by means of
mortgages.

90.—(1) The Board may raise all or any moneys which they are authorised to borrow or re-borrow under this Act by mortgage and all such moneys shall rank together without any priority on account of the date of the mortgage or on any other account.

(2) The provisions contained in sections 236 to 239 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall apply in the case of all mortgages granted under this Act except where any such provisions are expressly altered or varied by this Act and for the purposes of such application the term "local authority" in the said provisions shall be construed to mean the Board and the term "rates" shall be construed to include the revenues of the Board.

(3) The mortgages issued by the Board the endorsements A.D. 1912.
thereon and transfers thereof may be in the forms contained in
the Second Schedule to this Act or in forms to the like effect.

91. The Board shall be deemed to be an urban authority Board may
issue stock.
within the meaning and for the purposes of Part V. of the
Public Health Acts Amendment Act 1890 and to have adopted
that Part of the Act and the Board may exercise any statutory
borrowing power by the creation and issue of stock in the
manner by that Act provided and subject to the provisions
therein contained.

92. All moneys borrowed by the Board shall be applied Application
of moneys
borrowed.
only to the purposes for which they are authorised to be
borrowed and to which capital is properly applicable Provided
that moneys which may have been borrowed in excess of the
amount required shall be paid into the sinking fund or shall
be applied in such manner as the Board with the approval of
the Local Government Board determine.

93. The Board shall pay off all moneys borrowed by them Mode of
payment off
of money
borrowed.
under the powers of this Act either by equal yearly or half-
yearly instalments of principal or of principal and interest
combined or by means of a sinking fund or partly by such
instalments and partly by a sinking fund and the payment of
the first instalment or the first payment to the sinking fund
shall be made within one year or when the money is repaid
by half-yearly instalments within six months from the time of
borrowing the sum in respect of which the payment is made.

94.—(1) If the Board determine to repay by means of a Sinking
fund.
sinking fund any moneys borrowed by virtue of this Act such
sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period
of such equal annual sums as will together amount to
the moneys for the repayment of which the sinking
fund is formed A sinking fund so formed is hereinafter
called a “non-accumulating sinking fund”; or

(B) By payment to the fund throughout the prescribed
period of such equal annual sums as with accumula-
tions at a rate not exceeding three pounds per centum
per annum will be sufficient to pay off within the
prescribed period the moneys for the repayment of

A.D. 1912.

which such sinking fund is formed A sinking fund so formed is hereinafter called an "accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed or in accordance with the provisions of this Act of which the marginal note is "Alternative application of sinking fund" be immediately invested in statutory securities the Board being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Board towards the equal annual payments to the fund.

(4) The Board may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Board shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Board:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such equal annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Board in addition to the payments provided for by this Act.

(7) If it appears to the Board at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Board to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Board shall increase the payment to such extent as the Local Government Board may direct. A.D. 1912.

(8) If the Board desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund:

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Board may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Local Government Board shall approve.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Board may with the consent of that Board discontinue the equal annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Board with the consent of the Local Government Board may determine.

95. The Board may at any time apply the whole or any part of any sinking fund as follows:—

- (1) Where the Board are authorised by any statutory borrowing power to raise money for any purpose they may

Alternative
application
of sinking
fund.

A.D. 1912.

instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose any money for the time being forming part of a sinking fund (not being a sinking fund in respect of loans raised under the Local Loans Act 1875) as shall be available for the repayment of moneys borrowed by the Board and not shown by the deed to be raised in exercise of a particular borrowing power specified therein. Provided that when exercising this power the Board shall--

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(B) Credit the sinking fund with the repayment of an amount of the moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amounts so credited shall be deemed to be moneys discharged by application of such sinking fund;

(C) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the moneys equal to the sum withdrawn from the sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of this part of this Act as to repayment and re-borrowing shall apply thereto accordingly :

- (2) When any of the moneys are discharged by the application of any part of the sinking fund the moneys so discharged shall be deemed to be in respect of such one or more of the statutory borrowing powers under which the moneys for the repayment of which the sinking fund is established were borrowed and if in respect of more than one in such proportions as the Board shall determine. Provided that the amount of the moneys deemed to be discharged in respect of

any statutory borrowing power shall not exceed the amount of the contributions paid into the sinking fund in respect of that borrowing power and the accumulations (if any) thereon. A.D. 1912.

The Board shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as the Local Government Board shall require.

96. A person lending money to the Board under this Act shall not be bound to inquire as to the observance by the Board of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof. Protection of lender from inquiry.

97. The Board shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Board shall be a sufficient discharge to the Board in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Board have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register. Board not to regard trusts.

98.—(1) The Board shall have power—

(A) To borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Board in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable

Power to re-borrow.

A.D. 1912. — to the original loan shall apply to the moneys borrowed under this section.

(3) The Board shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Board shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid —

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Saving for
power to sell
&c. lands.

99.—(1) Nothing in this Part of this Act shall affect any power or duty of the Board to sell lease or otherwise dispose of any land or property of the Board.

(2) The said land or property shall in the hands of the purchaser or other person taking the same under the sale lease or other disposition be by virtue of this Act absolutely freed from the charge of moneys created under this Act and he shall not be concerned to see to the application of the purchase money or other money or be answerable for any loss or misapplication thereof.

Payment of
sale money
&c. to sink-
ing fund.

100. Subject to the provisions of the section of this Act of which the marginal note is "Proceeds of sale of surplus lands" and unless the Local Government Board otherwise direct the Board shall pay into the sinking fund all such money being capital or in the nature of capital and not being wholly or in part otherwise appropriated or required to be otherwise applied as shall from time to time arise from any sale lease or other disposition of land or other property of the Board in respect of or for which any of the moneys borrowed under this Act have been borrowed and as shall from time to time arise from any other source.

Annual re-
turn to Local
Government
Board.

101.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any

sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Local Government Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court And notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

A.D. 1912.

(2) If it appears to the Local Government Board by that return or otherwise that the Board have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

102.—(1) The expenses incurred by the Board in pursuance of this Act other than capital expenditure shall be defrayed out of

Contributions by constituent authorities.

A.D. 1912. a common fund to be formed from contributions made by the councils as hereinafter mentioned and from any other revenue received by the Board under the provisions of this Act.

(2) Twice in each year that is to say prior to the first day of April and the first day of October respectively the Board shall ascertain and determine the amount of money required by them during the half year beginning on such first day of April or first day of October as the case may be for purposes other than of capital expenditure and which shall not be payable out of payments other than those of the constituent authorities and shall apportion the same (except as hereinafter mentioned) between the constituent authorities in the proportion which the assessable value of the district of the Rhymney Council and the assessable value of the Rhymney portion of each of the districts of the Gelligaer Council the Caerphilly Council the Bedwellty Council and the Mynyddislwyn Council and the assessable value of the parish of Bedwas and the assessable value of the Rhymney portion of Machen Upper bears to the total assessable value of the constituent district:

Provided nevertheless that any money required by the Board for the following purposes (that is to say):—

- (1) For making any payments to the Caerphilly Council under subsection (1) of the section of this Act of which the marginal note is "Payments to be made to Caerphilly Council";
- (2) For paying any interest on or instalment of principal or of principal and interest or payment to a sinking fund in respect of any loans incurred by the Board for the purpose of making the payments due to the Caerphilly Council under subsection (2) of the said section;
- (3) For paying any interest or costs of any proceedings taken under subsection (3) of the said section; or
- (4) For paying any interest on or instalment of principal or of principal and interest or payment to a sinking fund in respect of any moneys borrowed by the Board for the purpose of paying the costs charges and expenses specified in paragraph (b) of the section of this Act of which the marginal note is "Costs of Act";

shall be apportioned only between the Gelligaer Council the Bedwellty Council the Rhymney Council the Mynyddislwyn Council and the St. Mellons Council in the manner aforesaid and

the Caerphilly Council shall not be required or liable to pay any portion of the moneys required by the Board for the said purposes or any of them. A.D. 1912.

(3) For the purposes of this section the assessable value of the districts of the Gelligaer Caerphilly Bedwellty Rhymney and Mynyddislwyn Councils respectively shall be deemed to be the several assessable values for the purposes of the general district rate of such districts and portions of districts respectively at the date of the issue of the precepts of the Board under the next succeeding subsection of this section and the assessable value of the parish of Bedwas and the Rhymney portion of Machen Upper shall be deemed to be the assessable value for the purposes of a rate for special expenses at the same date.

(4) The Board shall issue precepts to the constituent authorities for the amounts so respectively apportioned and the constituent authorities respectively shall within two months from the receipt of such precepts pay to the Board the amounts so apportioned to them respectively.

(5) Such amounts respectively shall be raised and paid by the Gelligaer Caerphilly Bedwellty Rhymney and Mynyddislwyn Councils out of their respective district funds and general district rates and by the St. Mellons Council as special expenses within the meaning of the Public Health Act 1875 chargeable on the parish of Bedwas and the Rhymney portion of Machen Upper and such funds and rates are hereby charged with the payment of the same accordingly and the councils respectively are hereby authorised and required to make and levy any rate or issue any precept that may be necessary for providing the amounts payable as aforesaid. Provided that the Rhymney portion of Gelligaer the Rhymney portion of Bedwellty and the Rhymney portion of Mynyddislwyn respectively shall be deemed to be and shall be a separate part of the urban district of Gelligaer the urban district of Bedwellty and the urban district of Mynyddislwyn as the case may be as if such separate part had been so constituted under section 211 (4) of the Public Health Act 1875 and the Gelligaer Bedwellty and Mynyddislwyn Councils shall each make separate assessments to the general district rate for the purpose of defraying the expenses of sewerage and sewage disposal upon such respective parts of the districts of such councils and shall include in the assessment to the general district rate upon the Rhymney portions of Gelligaer

A.D. 1912. Bedwellty and Mynyddislwyn as the case may be the amounts payable by them to the Board and the proceeds of such assessments are hereby charged with the payments of such amounts accordingly.

(6) If any constituent authority fails to pay any amount so apportioned within the time aforesaid the same shall be a debt due to the Board from such constituent authority and shall bear interest till payment at the rate of four pounds per centum per annum and the Board may in addition to all other remedies proceed for recovery thereof in either of the modes following (that is to say):—

(A) The Board may sue the defaulting authority for the amount unpaid in any court of competent jurisdiction:

(B) The Board may by precept empower some officer of the Board to raise by means of a rate to be assessed upon the like property and to be made levied and collected in like manner and with the like powers and authorities as the rate out of which the amount in arrear ought to have been paid by the defaulting authority such sum (the amount to be specified in the precept) as in the opinion of the Board will be sufficient to pay the amount so in arrear and interest and all expenses incurred in consequence of the non-payment thereof and the expenses of levying and collecting such rate and any officer of the Board so empowered shall have the like powers of assessing making levying and collecting rates and of issuing precepts and of requiring officers of the defaulting authority to account as the defaulting authority would have under any Act or otherwise and the officer of the Board so empowered after paying all money payable under the precept shall pay any residue of the money received by him (the amount to be ascertained by the Board) to the defaulting authority.

(7) Any receiver appointed under this Act shall be entitled to receive the amounts so apportioned by the Board to the constituent authorities and in case the Board at any time neglect or refuse to make such apportionment or to recover the same or any part thereof the receiver shall in every such case be entitled to make such apportionment and to exercise all or

any of the powers by this section conferred on the Board for recovering the amount so apportioned. A.D. 1912.

103.—(1) It shall be lawful for the Caerphilly Council independently of any other borrowing power to borrow at interest any sums of money required for the purposes of paying the costs charges and expenses payable by them preliminary to and of and incidental to the opposition in Parliament to the Bill for this Act. Power to Caerphilly Council to borrow money for payment of costs of opposition.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Caerphilly Council may mortgage or charge the district fund and general district rate of the urban district of Caerphilly.

(3) The Caerphilly Council shall pay off all moneys borrowed by them under this section within a period of five years from the passing of this Act.

(4) The Caerphilly Council may raise all or any moneys which they are authorised to borrow under this section either by mortgage or by issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in the other and the provisions of the Public Health Act 1875 relating to the borrowing and repayment of money (except so much of section 233 of that Act as relates to the sanction of the Local Government Board and subsections (1) (2) and (3) and so much of subsection (4) as relates to the time for which the moneys may be borrowed of section 234 of that Act) shall apply to moneys borrowed by the Caerphilly Council under this section.

(5) The provisions of the section of this Act of which the marginal note is "Annual return to Local Government Board" shall be deemed to apply to any sum required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the powers of this section or in respect of any sum raised thereunder as though "the clerk" meant the clerk of the Caerphilly Council and "the Board" meant the Caerphilly Council.

PART VI.

MISCELLANEOUS.

104.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem Inquiries by Local Government Board.

A.D. 1912. necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) Any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector shall be paid by the Board or the councils or any of them in such manner as the Local Government Board may direct.

Recovery of penalties &c.

105. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Penalties to be paid over to treasurer.

106. All penalties recovered on the prosecution of the Board or any officer of the Board on their behalf under this Act or under any byelaw thereunder shall be paid to the Board and carried to the credit of the revenue of the Board.

Judges not disqualified.

107. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Recovery of demands.

108. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Local taxation return.
1912-13

109. The Board shall be deemed to be a local authority within the meaning of the Local Taxation Returns Act 1860.

110. Where in the judgment of the Board it is expedient for the Board to apply to Parliament for the repeal amendment or extension of any Act for the time being relating to or affecting the Board or for any alteration or extension of their powers (including the grant of new powers) or otherwise in respect of any matter for the extension improvement of or in connexion with their undertaking they may pay the costs and expenses attending such application as taxed by the taxing officer of the House of Lords or of the House of Commons out of their revenues as part of their working expenses.

A.D. 1912.
Powers to
apply to Par-
liament.

No expenses in relation to any such application shall be paid as aforesaid unless incurred in pursuance of a resolution passed at a meeting of the Board by an absolute majority of the whole number of the Board after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in two newspapers published or circulating in the districts such notice to be in addition to the ordinary notices required for summoning such meeting.

No further expenses shall be incurred or paid as aforesaid after the deposit of the Bill unless the propriety of the promotion of the Bill shall be confirmed by such absolute majority at a further meeting of the Board to be held in pursuance of a similar notice not less than fourteen days after the deposit of the Bill in Parliament and shall have received the approval of the Local Government Board. The Board may oppose any Bill in Parliament which in their judgment it is expedient in the interests of their undertaking to oppose and pay the costs and the expenses attending such opposition as taxed by the taxing officer of the House of Lords or of the House of Commons out of their revenues as part of their working expenses.

111. The Board may take hold and use any licence or authority (not being exclusive) under any letters patent for the use of any invention relative to the disposal of sewage.

Power to hold
licences under
letters patent.

112. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Board to take use or in any manner interfere with any portion of the bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of his Crown and under the management

Crown
rights.

A.D. 1912. of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Costs of Act. **113.** All the costs charges and expenses (*a*) preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto including the costs charges and expenses preliminary to and of and connected with the compliance with the requirements with the Borough Funds Acts 1872 and 1903 and (*b*) preliminary to and of and incidental to the inquiries held by the Local Government Board into the application of the Gelligaer Council for sanction to a scheme of sewerage and sewage disposal for the upper portion of the Rhymney Valley and of the opposition of the constituent authorities thereto shall be taxed by the taxing officer of the House of Lords or of the House of Commons and the costs charges and expenses specified in paragraph (*a*) aforesaid as so taxed shall in the first instance be paid by the constituent authorities out of any of their funds or rates in the same proportion and the same manner as by this Act is provided for the payment of the contributions of the constituent authorities to the expenses of the Board and the costs charges and expenses specified in paragraph (*b*) aforesaid as so taxed shall in the first instance be paid by the Gelligaer Council the Bedwellty Council the Rhymney Council and the Mynyddislwyn Council and the St. Mellons Council out of any of their respective funds or rates in the same proportion relatively to one another and in the same manner as by this Act is provided for the payment of the contributions of those councils to the expenses of the Board but all such costs charges and expenses whether specified in paragraph (*a*) or paragraph (*b*) aforesaid shall be repaid by the Board to the constituent authorities who have paid the same out of the moneys to be borrowed by the Board under the powers of this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1912.

FIRST SCHEDULE.

PART I.

DESCRIPTION OF THE RHYMNEY PORTION OF GELLIGAER.

So much of the parish of Gelligaer as lies to the east of a line commencing at the northern extremity of the parish near Carn yr Helyg and thence following the western boundary of the parish through Pwll Mere to a point marked by three stones situated $16\frac{1}{2}$ chains or thereabouts measured in a south-easterly direction from the western corner of the Full Moon public-house at Tyn-y-Waun passing thence in a straight line in a south-easterly direction for 24 chains or thereabouts to the Ordnance Triangulation Station in the plot numbered 274 thence in a straight line in a south-easterly direction for a distance of $27\frac{1}{2}$ chains or thereabouts to the north-west corner of the plot numbered 276 containing the buildings known as Tunnel Pit Houses thence along the western boundary of the said plot to the south-west corner thereof thence in a straight line in a southerly direction for a distance of 36 chains or thereabouts to a point on the boundary of the said parish of Gelligaer situated 3 chains or thereabouts measured in a northerly direction from the northern corner of plot numbered 1027 thence along the said boundary in a south-easterly direction for a distance of $16\frac{1}{2}$ chains or thereabouts to the eastern corner of the said plot numbered 1027 thence in a straight line in a south-easterly direction for a distance of $32\frac{1}{2}$ chains or thereabouts to the Ordnance Triangulation Station in plot numbered 302 thence in a straight line in a southerly direction for a distance of $58\frac{1}{2}$ chains or thereabouts to the Ordnance Triangulation Station on the carn known as Carn Bugail thence in a straight line in a south-easterly direction for a distance of 27 chains to the point marked by a carn in plot numbered 671 thence in a straight line in a south-easterly direction for a distance of 64 chains or thereabouts to a point marked by a tumulus in plot numbered 941 thence in a straight line in a south-westerly direction for a distance of $25\frac{1}{2}$ chains or thereabouts to the eastern corner of plot numbered 944 thence in a straight line in a south-easterly direction for a distance of $33\frac{1}{2}$ chains or thereabouts to the Ordnance Triangulation Station in plot numbered 1576 thence in a straight line in a south-easterly direction for a distance of $52\frac{1}{2}$ chains or thereabouts to a point $4\frac{1}{2}$ chains or

A.D. 1912. thereabouts measured in a direction due west from the south corner of plot numbered 1542 thence in a straight line in a south-westerly direction for a distance of 9 chains or thereabouts to the Ordnance Triangulation Station near the Gelligaer main road in plot numbered 1576 thence in a straight line in a direction slightly east of south for a distance of 86 chains or thereabouts to the Ordnance Triangulation Station in plot numbered 1907 near Pen-heol Adam Cottages thence in a straight line in a south-easterly direction for a distance of 28 chains or thereabouts to the north-west corner of field numbered 1957 thence in a straight line in a south-easterly direction for a distance of 16 chains or thereabouts to the west corner of plot numbered 2523 thence along the south-western boundary of plots numbered 2523 2520 2603 2604 and 2507 to the road leading to Nelson thence across the said road to the west corner of plot numbered 2505 thence along the south-western boundary of the said plot numbered 2505 and along the south-eastern boundary of such plot to the west corner of plot numbered 2415 thence along the south-western boundary of such plot numbered 2415 to the north corner of plot numbered 2416 thence in a straight line in a southerly direction to the south corner of the said plot numbered 2416 thence in a south-westerly direction along the north-western boundary of plot numbered 2418 and along the south-western boundary of the said plot to the most northerly point of the plot known as Waun Rydd and numbered 2499 thence in a straight line in a southerly direction for a distance of 31 chains or thereabouts to the north corner of plot numbered 2816 (Ordnance map second edition 1901) thence along the north-west boundary of such plot numbered 2816 and along the north-west boundary of plot numbered 2817 (Ordnance map second edition 1901) to a point 4 chains or thereabouts measured in a south-westerly direction from the north corner of the said plot numbered 2817 thence in a straight line in a south-westerly direction for a distance of 7 chains or thereabouts to the north corner of plot numbered 2812 thence along the western boundary of the said plot numbered 2812 (Note—This boundary is undefined) to the north-west corner of plot numbered 2811 thence along the north-west boundary of plots numbered 2811 and 2810 to the west corner of the latter thence in a straight line in a south-westerly direction for a distance of 10 chains or thereabouts to the east corner of the plot numbered 2805 thence along the north-westerly boundary of plot numbered 2808 to a point on the boundary of the parish of Gelligaer at the west corner of the said plot numbered 2808 thence following such parish boundary in a south-easterly direction for a distance of $2\frac{1}{2}$ chains or thereabouts to a point 5 chains or thereabouts measured in a north-westerly direction from the north-west corner of plot numbered 181 in the parish of Llanfabon.

The foregoing numbers refer to the $\frac{1}{2500}$ Ordnance map Glamorgan second edition 1900 except where otherwise stated.

PART II.

A.D. 1912.

DESCRIPTION OF THE RHYMNEY PORTION OF CAERPHILLY.

So much of the parish of Llanfabon as lies to the east of a line commencing at a point on the north-eastern boundary of the said parish 5 chains or thereabouts measured in a north-westerly direction from the north-west corner of plot numbered 181 and passing in a south-westerly direction for a distance of $\frac{1}{2}$ chain or thereabouts to the north corner of the plot numbered 180 thence along the north-westerly boundary of the said plot numbered 180 to its western corner thence in a straight line across the Rhymney Railway to the north corner of plot numbered 183 thence along the north-westerly boundary of the said plot numbered 183 and of the plot numbered 267 to the road leading from Nelson to Caerphilly thence in a westerly direction along the northern boundary of the said road for a distance of $\frac{3}{4}$ chain or thereabouts thence across the said road to the north-west corner of the plot numbered 266 containing the dwelling known as Tai-fforest thence in a straight line in a south-westerly direction for a distance of 18 chains or thereabouts to the north corner of the plot numbered 284 thence along the westerly boundary of the said plot numbered 284 to the south-east corner of the plot numbered 285 thence in a straight line in a southerly direction across plot numbered 320 to the west corner of plot numbered 321 thence along the south-westerly boundary of the said plot 321 to the south-west corner of the said plot thence in a straight line in a southerly direction across plot numbered 555 and across the occupation road leading to Pen-y-Waun to the north corner of plot numbered 551 thence in a straight line in a direction slightly east of south across plots numbered 551 and 552 to the south-east corner of the latter thence in a straight line in a south-easterly direction across plot numbered 657 to the north-west corner of plot numbered 658 thence in a southerly direction along the western boundary of the said plot 658 to the south-west corner thereof thence in a straight line in a southerly direction for a distance of 20 chains or thereabouts across the plot numbered 669 and across part of the plot numbered 668 known as Mynydd Eglwysilan to the west corner of the plot numbered 527 thence in a straight line in a southerly direction for a distance of $39\frac{1}{2}$ chains or thereabouts to a point on the boundary of the said parish of Llanfabon $21\frac{1}{2}$ chains or thereabouts measured in a north-westerly direction from the north corner of the plot numbered 167 in the parish of Eglwysilan.

So much of the parish of Eglwysilan as lies to the south and east of a line drawn from a point on the boundary of the said parish on the common known as Mynydd Eglwysilan $21\frac{1}{2}$ chains or thereabouts measured in a north-westerly direction from the north corner of the plot numbered 167 and passing in a straight line in a south-westerly

A.D. 1912. direction for a distance of 13 chains or thereabouts to the Ordnance Triangulation Station in plot numbered 144 thence in a straight line in a south-westerly direction for a distance of $73\frac{1}{2}$ chains or thereabouts to the next Ordnance Triangulation Station in the said plot numbered 144 being a point 6 chains or thereabouts measured in a north-westerly direction from the north-east corner of plot numbered 219 thence in a straight line in a direction slightly south of west for a distance of $22\frac{1}{2}$ chains or thereabouts to the most southerly of the cairns known as Carneddi Llwyddion thence in a straight line in a south-westerly direction for a distance of $19\frac{1}{2}$ chains or thereabouts to the tumulus known as Twyn yr Arian thence in a straight line in a south-westerly direction to a point on the boundary of the said parish of Eglwysilan 22 chains or thereabouts measured in a southerly direction along the said boundary from the north corner of the plot numbered 110 thence along the said boundary in a southerly direction for a distance of 26 chains or thereabouts to a point 19 chains or thereabouts measured in a westerly direction from the west corner of plot numbered 534 thence in a straight line in a south-easterly direction for a distance of 32 chains or thereabouts to the west corner of plot numbered 483 thence along the south-western boundary of such plot numbered 483 to a point $4\frac{1}{2}$ chains or thereabouts measured in a westerly direction from the south corner of the said plot numbered 483 thence in a straight line in a south-easterly direction for a distance of $20\frac{1}{2}$ chains to a point on the northern boundary of the plot numbered 531 $2\frac{1}{2}$ chains or thereabouts measured in a westerly direction from the north-east corner of the said plot numbered 531 thence in a straight line in a direction slightly west of south across the said plot numbered 531 to the south corner thereof thence in a straight line in a south-westerly direction for a distance of 32 chains or thereabouts to a point on the boundary of the said parish of Eglwysilan $1\frac{1}{2}$ chains or thereabouts measured in a north-westerly direction from the north-west corner of plot numbered 619 thence following the said boundary along the east side of the public road to the south-west corner of plot numbered 625 thence along the southern boundary of the said plot to the south-east corner thereof thence in a straight line in a south-easterly direction for a distance of 28 chains or thereabouts to the north corner of plot numbered 658 thence in a straight line in a south-easterly direction for a distance of 46 chains or thereabouts to the south-west corner of plot numbered 660 thence in a straight line in a southerly direction for a distance of 29 chains or thereabouts to the north-west corner of plot numbered 1307 thence along the western boundary of the said plot numbered 1307 to a point on the boundary of the said parish at the south-west corner of the said plot numbered 1307 thence along the said parish boundary and across the road leading to

Groes-Wen to the most northerly point of plot numbered 1331 A.D. 1912.
thence along the north-east boundary of the said plot numbered
1331 to the west corner of plot numbered 1422 thence in a straight
line in an easterly direction across the said plot numbered 1422
to the east corner thereof thence along the south-east boundary
of plot numbered 1423 to the west corner of plot numbered 1428
thence along the south-west and south-east boundary of the said plot
numbered 1428 to the east corner thereof thence along the western
boundary of the occupation road leading to Gwaun-gledyr-uchaf and
numbered 1427 to the public road to Caerphilly thence along the
northern boundary of the said public road to a point opposite the
north-west corner of plot numbered 1440 thence across the said public
road and along the western boundary of the said plot numbered 1440
and along the southern boundary of the said plot numbered 1440 to
the west corner of plot numbered 1510 thence along the south-western
boundary of the said plot to the most southerly point thereof thence
in a westerly direction along the north-west boundary of plot numbered
1511 and along the south-west boundary of the said plot numbered 1511
to the south corner thereof thence in a straight line in a south-easterly
direction across the Rhymney Railway to the north-easterly corner of
plot numbered 1515 thence along the northern boundary of plot
numbered 1512 to the north corner thereof thence along the eastern
boundary of the said plot numbered 1512 to the south-west corner of
plot numbered 1508 thence along the southern boundary of the said
plot numbered 1508 to the north-west corner of plot numbered 1507
thence along the western boundary of the said plot numbered 1507
and along the southern boundary thereof to the north-east corner of
plot numbered 1543 thence along the western boundary of plot numbered
1544 to the occupation road leading to Graig fawr thence in a straight
line in a south-easterly direction for a distance of $13\frac{1}{2}$ chains or there-
abouts crossing the aforesaid occupation road and plots numbered 1542
and 1592 to a point on the north-east boundary of plot numbered 1593
 $6\frac{1}{2}$ chains or thereabouts measured in an easterly direction from the
west corner of the said plot thence along the south-western boundary
of plot numbered 1592 to the east corner of plot numbered 1594
thence across the occupation road leading to Ffwrnes Blwm Farm to
the north-west corner of plot numbered 1610 thence along the western
and southern boundary of the said plot numbered 1610 to the public
road numbered 1823 thence in a straight line in an easterly direction
for a distance of 9 chains or thereabouts crossing the said high road
and crossing the plot numbered 1613 and the road numbered 1776
to the north corner of plot numbered 1775 thence in a southerly
direction along the western boundary of the plot numbered 1614 and
along the southern boundary thereof to the western boundary of the
plot numbered 1766 containing the dwelling known as Ty'n-y-Coedcae

A.D. 1912. — thence in a southerly direction along the western boundary of the said plot numbered 1766 and along the western boundary of the plot numbered 1765 and along the southern and eastern boundaries thereof to the south corner of the common numbered 1615 thence along the southern boundary of the said common for a distance of 1 chain or thereabouts to the western corner of plot numbered 1760 thence in a straight line in an easterly direction for a distance of $32\frac{1}{2}$ chains or thereabouts crossing the plots numbered 1760 and 1616 to the north-west corner of the plot numbered 1687 and containing the dwelling known as Garn-Lwyd thence along the northern boundary of the said plot numbered 1687 to the north-eastern corner thereof thence in a straight line in an easterly direction for a distance of 20 chains or thereabouts crossing Caerphilly common plot numbered 1616 and the public road to Caerphilly to the south-west corner of the plot numbered 1684 thence along the southern boundary of the said plot numbered 1684 to the south-east corner thereof thence in a southerly direction along the western boundary of the plot numbered 1683 and along the southern boundary thereof for a distance of 2 chains or thereabouts measured in an easterly direction from the south-west corner of the said plot numbered 1683 thence across the road numbered 1681 to the west corner of the plot numbered 1692 thence along the western and southern boundaries of such plot numbered 1692 to the north-west corner of the plot numbered 1709 containing the dwelling known as Cefn-Carnau-uchaf thence along the westerly and southerly boundaries of the said plot numbered 1709 to the south-east corner thereof thence in a south-easterly direction along the south-westerly and southerly boundaries of the plot numbered 1694 and along the southerly boundary of the plot numbered 1695 to the north-west corner of the plot numbered 1697 thence along the westerly boundary of the said plot numbered 1697 and along the southerly boundary thereof to the point at which this joins the boundary of the said parish of Eglwysilan 2 chains or thereabouts from the eastern corner of the said plot numbered 1697.

The foregoing numbers refer to the 25^{th} Ordnance map for Glamorgan (second edition 1900).

PART III.

DESCRIPTION OF THE RHYMNEY PORTION OF BEDWELLY.

So much of the urban district of Bedwellty as lies to the west of a line drawn from a point on the southern boundary of the said urban district 2 chains or thereabouts measured in a westerly direction from the south-east corner of field numbered 1953 thence in a northerly direction to the northern boundary of the said field crossing Plas Road

thence along the western boundary of fields numbered 1920 and 1919 A.D. 1912.
thence along the south-western boundary of field numbered 1917 in
a south-westerly direction for half a chain or thereabouts thence in a
north-westerly direction along the western boundary of field numbered
1917 thence in a straight line across field numbered 1916 in a north-
westerly direction to a point in the northern boundary of the said
field $2\frac{1}{4}$ chains or thereabouts measured in a north-easterly direction
from the north-west corner of the said field thence in a north-easterly
direction across field numbered 1870 terminating in the northerly
fence of such field at a point $3\frac{1}{2}$ chains or thereabouts measured in a
north-easterly direction from the north-west corner of the said field
thence* in a north-easterly direction in a straight line across fields
numbered 1868 and 1867 to the south-east corner of field numbered
1813 thence along the southern boundary of such field as far as the
centre of the road leading from Upper Machen to Tredegar thence
along the centre of that road to a point opposite the southern fence
of field numbered 1808 thence across such road and along the
southern boundary of field numbered 1808 and the western boundary
of such field to the southern boundary of field numbered 1809 thence
in a south-westerly direction along the southern boundary of field
numbered 1809 as far as the south-west corner of such field thence in
a north-westerly direction along the western boundary of field numbered
1809 thence in a south-westerly direction along the southern fence of
the enclosure numbered 1739 thence along the south-westerly fence of
such field to a point opposite the end of the building known as Cefn-
y-fforest thence in a northerly direction across the occupation road and
outside the western buildings of Cefn-y-fforest thence along the
westerly fence of the enclosure numbered 1739 to a point in the
western fence of field numbered 1676 two chains or thereabouts
measured from the south-west corner of such field thence continuing
along the western fence of fields numbered 1676 and 1675 to the
north-west corner of field numbered 1675 thence in a straight line
across field numbered 1674 and the road leading from Upper Machen
to Tredegar to the south-west corner of field numbered 1679 thence
in a north-easterly direction by a straight line to the south-east
corner of field numbered 1640 thence continuing in a northerly
direction in a straight line across field numbered 1640 across the road
called Heol Pit-y-Ceiliogod at a point 4 chains or thereabouts measured
in a south-westerly direction from the south-west corner of field
numbered 1635 thence along the northern boundary of such road as
far as the south-west corner of field numbered 1635 thence along the
westerly fence of fields numbered 1635 and 1636 and the north-
westerly fence of the latter field thence in a straight line across field
numbered 1558 to the southern corner of field numbered 1563 thence
in a straight line across fields numbered 1563 and 1562 to the
northern corner of field numbered 1562 thence along the north-west

A D. 1912. boundary of field numbered 1507 to the north corner of the same thence in a straight line across the footpath into field numbered 1505 entering such field at a point $3\frac{1}{4}$ chains or thereabouts measured in a north-westerly direction from the south corner of such field thence along the south-westerly and westerly boundary of field numbered 1505 thence along the southern boundary of field numbered 1513 thence to the centre of the road leading from Upper Machen to Tredegar thence in a northerly direction along the centre of such road to near Church Inn Bedwellty at a point 5 chains or thereabouts measured from the northern corner of St. Sannans Church thence in a straight line for a distance of 1 chain or thereabouts to the south-west corner of field numbered 1223 for a distance of 3 chains or thereabouts thence along the eastern boundary of the high road leading from Upper Machen to Tredegar crossing the road called Heol Penrhiw'r-Eglwys to the south-west corner of the field numbered 1156 and along the south-west and western boundaries of fields numbered 1156 1155 1062 and 1007 thence across the occupation road leading to Berllan-lwyd along the south-western fence of fields numbered 1008 1009 1010 1011 and 978 thence in a straight line crossing the road from Upper Machen to Tredegar as far as and into the north-west corner of field numbered 988 thence in a straight line in a north-easterly direction through field numbered 989 over the Commin Coed-y-Moeth crossing the road from Upper Machen to Tredegar as far as the north-west corner of field numbered 982 thence in a straight line in a north-westerly direction to the south-west corner of field numbered 854 thence in a north-easterly direction across field numbered 854 to the north-east corner thereof thence in a north-westerly direction in a straight line from the north-easterly corner of field numbered 854 crossing field numbered 855 then crossing the approach road to Coed-y-Moeth and crossing field numbered 842 to the south-west corner of field numbered 843 thence along the south-westerly and north-westerly fence of field numbered 843 the south-westerly fence and north-westerly fence of field numbered 844 thence along the south-westerly fence of fields numbered 551 and 553 to the north-west corner of such field thence in a straight line in a northerly direction through field numbered 537 to the north-east corner thereof thence across the occupation road to the south-east corner of field numbered 424 thence along the southern boundary of field numbered 424 and the south-western boundary of the same field crossing the road leading from the road from Upper Machen to Tredegar to Llwyn-arfon thence along the south-west boundary of field numbered 421 and the western boundary of field numbered 420 and joining the existing boundary of Bedwellty at a point $1\frac{1}{4}$ chains or thereabouts measured in a north-westerly direction from the south-west corner of field numbered 420.

The foregoing numbers refer to the 2500 Ordnance map (2nd edition 1901).

PART IV.

A.D. 1912.

DESCRIPTION OF THE RHYMNEY PORTION OF MYNYDDISLWYN.

So much of the urban district of Mynyddislwyn as lies to the west and south of an imaginary line commencing at the boundary of the said urban district at a point situated at the south corner of field numbered 1192 being nine chains or thereabouts in a westerly direction from the south corner of the building known as the Crown Hotel at Bryn and thence passing in a north-westerly direction in a straight line to the north-east corner of field numbered 1235 thence continuing along the southern boundary of field numbered 1201 till it reaches the south-west corner of the said field thence continuing in a northerly direction in a straight line across field numbered 1202 and across the public road leading from Bryn to Gelli-haf to the south-west corner of field numbered 1200 and thence along the west and north boundaries successively of the said field to the south-west corner of field numbered 1199 and continuing along the western and northern boundaries successively of field numbered 1199 to the south-west corner of field numbered 1124 thence continuing along the western boundary of field numbered 1124 to the north-west corner thereof and continuing along the western boundary of field numbered 1123 to the north-west corner thereof thereafter passing in a northerly direction in a straight line across fields numbered 1122 and 1061 to the northern corner of the last-named field thence continuing in a direction slightly east of north across field numbered 1060 to a point situated on the northern boundary thereof one-half chain or thereabouts west of the north-east corner of the said field thence continuing in a north-westerly direction in a straight line for a distance of four-and-a-half chains or thereabouts to a point situated in field numbered 521 one-half chain in a south-easterly direction from the westernmost corner of the said field thence continuing in a north-easterly direction in a straight line to a point in the northern boundary of the said field situated five chains or thereabouts in a westerly direction from the northern corner thereof thence crossing the public road leading from Gelli-haf to the road from Bryn to Bedwellty thence passing in a north-easterly direction in a straight line across field numbered 520 and terminating on the boundary of the Mynyddislwyn Urban District at a point situated one chain or thereabouts west of the north corner of the said field.

The foregoing numbers refer to the $\frac{1}{2500}$ Ordnance map (2nd edition 1901).

A.D. 1912.

PART V.

DESCRIPTION OF THE RHYMNEY PORTION OF MACHEN UPPER.

So much of the parish of Machen Upper as lies to the south of a line commencing at the parish boundary at a point 25 chains or thereabouts measured in a south-easterly direction from the south corner of the engine house at Wentlloog colliery and passing thence in a straight line in a north-easterly direction to the westernmost corner of field numbered 115 thence following the western and northern fences successively of field numbered 115 to the east corner thereof thence passing along the north-west fence of field numbered 117 to the north corner of the said field thence following the north-east fence of the said field to the north-west corner of field numbered 121 thence along the north and north-east fences successively of field numbered 121 to a point on the western fence of the approach road to Pen-heol-Machen distant 1·7 chains or thereabouts measured in a south-easterly direction from the south corner of the southernmost building of Pen-heol-Machen thence in a straight line to the north corner of field numbered 130 thence in a straight line to the north-west corner of field numbered 136 thence along the northern fence of fields numbered 136 178 and 198 successively to the north-east corner of field numbered 198 thence in a straight line to the south-east corner of field numbered 199 thence in a straight line to the centre of the pond situated 17 chains or thereabouts in a southerly direction from the southernmost corner of the houses called Ty'n-y-ffynnon and 13·3 chains or thereabouts south-east of the house called Pen-heol-Sais From the centre of the last described pond the line passes in a straight line to the north-east corner of field numbered 204 thence follows the northern fence of fields numbered 207 210 211 and 212 successively to the north-east corner of field numbered 212 thence along the eastern fence of field numbered 212 to the south-eastern corner of the said field thence along the north fence of field numbered 217 to the north-east corner thereof thence along the bank forming the eastern boundary of field numbered 219 to the easternmost corner of the said field thence in a straight line to the centre of the tumulus called Begwns thence in a straight line to a point on the eastern boundary of the said parish of Machen Upper marked Post on the Ordnance map and situated 26·5 chains or thereabouts measured in a south-westerly direction from the house called Coed-y-mochyn.

The foregoing numbers refer to the $\frac{1}{2500}$ Ordnance map (2nd edition 1901).

SECOND SCHEDULE.

A.D. 1912.

FORM OF MORTGAGE.

RHYMNEY VALLEY SEWERAGE BOARD.

By virtue of the Rhymney Valley Sewerage Board Act 1912 and of other their powers in that behalf them enabling the Rhymney Valley Sewerage Board (herein-after referred to as "the Board") in consideration of the sum of _____ pounds paid to the treasurer of the Board by _____ (herein-after called "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Board as the said sum of _____ pounds doth or shall bear to the whole sum which is or shall be charged on the said security To hold unto the mortgagee [his] executors and administrators and assigns from the day of the date of these presents until the said sum of _____ pounds shall be fully paid to [him] or them with interest for the same (subject as herein-after provided) after the rate of _____ per centum per annum from the _____ day of _____ one thousand nine hundred and _____ until payment of the said principal sum Such interest to be paid half-yearly [to the bearer of the coupons or interest warrants hereunto annexed or to be hereafter annexed hereto on the days and at the place therein mentioned] [on the _____ day of _____ and the _____ day of _____ in each year] :

And it is hereby agreed that the said principal sum of _____ pounds shall be repaid at the offices of the Board at _____ [(subject as herein-after provided) on the _____ day of _____ one thousand nine hundred and _____] [by _____] [upon _____ notice being given requiring to repay or to have repaid the said principal sum] :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the chairman and clerk of the Board for the time being respectively and that upon any such endorsement being made whether relating to extension of time only

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Board Act, 1912.

A D. 1912. or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted therein.

In witness whereof the Board have caused their common seal to be hereunto affixed this day of one thousand nine hundred and

Passed under the common
seal of the Board in
the presence of

This mortgage is duly registered in the register of mortgages kept by me pursuant to the provisions in that behalf.

Dated this day of one thousand nine hundred and

The Endorsement within referred to.

The within-named consenting the within-mentioned time for repayment of the within-mentioned principal sum of is hereby extended to the day of one thousand nine hundred and [and the interest to be paid thereon on and from the day of one thousand nine hundred and is hereby declared to be after the rate of per centum per annum].

Dated this day of one thousand nine hundred and

Witness

FORM OF TRANSFER OF MORTGAGE.

RHYMNEY VALLEY SEWERAGE BOARD.

I [the within-named] A.B. [of] in consideration of the sum of pounds paid to me by of (herein-after called "the transferee") do hereby transfer to the transferee [his] executors administrators and assigns [the within-written security] [the mortgage number of the Rhymney Valley Sewerage Board at the yearly rate of day of] in the hundred bearing date the and all my right and interest under the same subject to the several

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Board Act, 1912.

conditions on which I hold the same at the time of the execution A.D. 1912.
hereof and I the transferee for myself my executors administrators
and assigns do hereby agree to take the said mortgage security subject
to the same conditions.

Dated this day of one thousand nine
hundred and

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